

1. Residency and Financials

1.1 PARTIES AND OCCUPANTS

This Lease Agreement, created between Douglas Steelhammer, herein called Landlord, and Kristal C. Robinson, Fabian M. Curry, herein called Tenant. Landlord hereby agrees to rent to Tenant the real property located at:

3019 Highlands Blvd
Spring Valley, CA 91977

USE and OCCUPANCY

Property shall be used as a residence only. Operating a business from this property is prohibited. The premises are to be occupied as a residence and only those adults specifically named in this agreement, along with their dependents, may occupy and use the premises. Occupancy by anyone other than those named above for more than 10 nights shall constitute a breach of the Lease Agreement unless prior consent is obtained in writing by Landlord.

NON-ASSIGNMENT OF RENTAL AGREEMENT

Tenant shall not sublet all or any part of the premises, or assign or transfer this Agreement or any interest in it, without Landlord's prior written consent. Unless such consent is obtained, any assignment transfer or subletting of premises or this Agreement or tenancy, by voluntary act of Tenant, operation of law or otherwise, shall, at the option of Landlord terminate this Agreement. Any proposed assignee, transferee or sublessee shall submit to Landlord an application and credit information to Landlord's approval and, if approved, sign a separate written agreement with Landlord and Tenant. Landlord's consent to any one assignment, transfer or sublease, shall not be construed as consent to any subsequent assignment, transfer or sublease and does not release Tenant of Tenant's obligations under this Agreement.

SHORT-TERM RENTAL

Tenant is prohibited from offering all or part of the Premises for short-term rental, such as through AirBNB, VRBO, or other such sites or programs, regardless of any local laws that may be or have been enacted. Any advertising or on-line postings as well as actual rentals of the Premises to vacation or short-term guests shall constitute a material breach of this Agreement. Any person who is not a Tenant, as defined herein, who occupies any portion of the Premises, for any period of time whatsoever, for any compensation or consideration whatsoever (including, without limitation, the payment of money and/or trade and/or barter of other goods, services, or property occupancy rights) is NOT a guest, and such occupancy constitutes unauthorized subletting or assignment which is a substantial and material breach of this Agreement.

JOINT AND INDIVIDUAL OBLIGATIONS

If there is more than one Tenant, each one shall be individually and completely responsible for the performance of all obligations of Tenant under this Agreement, jointly and with every other Tenant, and individually, whether or not in possession.

1.2 LEASE DURATION

☒ Commencing on 04/01/2024 and ending on 03/23/2025. **Thirty (30) days written notice is required by either party to terminate this Agreement at the scheduled lease expiration date. If no notice is given by either party, this Agreement will continue on a month-to-month basis.** Tenant may then terminate tenancy by providing **Thirty (30) days written notice (texts and/or verbal notice is not acceptable notice)**. Landlord may terminate the tenancy by providing written notice as provided by law. Landlord rents the premises to Tenant with the following terms and conditions.

-OR-

☐ Commencing on the 04/01/2024 and continuing on a month-to-month basis. Tenant may terminate tenancy by providing thirty (30) days **written notice (texts and/or verbal notice are not considered acceptable notice)**. Landlord may terminate the tenancy by providing written notice as provided by law. Landlord rents the premises to Tenant with the following terms and conditions.

CONFIRMATION OF REAL ESTATE AGENCY RELATIONSHIPS

Pure Property Management, Inc., dba PURE Property Management of California is the agent of the Landlord exclusively.

1.3 RENTS AND CHARGES

RENT

"Rent" shall mean all monetary obligations of Tenant to Landlord under the terms of the Agreement, except security deposit. Tenants agree to pay Landlord the sum of \$3,295.00 due and payable monthly in advance on or before the first (1st) of each month during the term of this Agreement. If rent is not personally received by 5:00pm on the third (3rd) day of the month, then it will be considered by all parties to be late. If the 3rd day of the month is a Sunday, late fees will be assessed as of 5:00 pm on the 4th. If Tenant chooses to mail rental payment they assume the risk of late arrival.

PAYMENT OF RENT

Monthly payments may be made by personal check, including electronic funds transfer. No personal checks will be accepted after the 6th day of the month or in response to a notice to pay rent or quit or a notice to perform covenant or quit requiring a payment. The normal hours available to make payments in person are from 8am to 5pm on weekdays. A 24 hour, seven days a week rent payment drop slot is available at the address below. If any payment is returned for non-sufficient funds or because tenant stops payment, then after that Landlord may, in writing, require Tenant to pay rent in cashier's check for three months. If any subsequent rent is returned, for any reason, Landlord may require all future rent to be paid by cashier's check or money order. Rent received may be applied first to outstanding charges. Time is of the essence and no excuses will be accepted. Rent shall be made payable to:

Pure Property Management, Inc.

16516 Bernardo Center Drive, #200

San Diego, CA 92128

858-675-9515

LATE CHARGE AND RETURNED CHECKS

Tenant acknowledges either late payment of Rent or issuance of a returned check may cause Landlord to incur costs and expenses, the exact amounts of which are extremely difficult and impractical to determine. These costs may include, but are not limited to, processing, enforcement and accounting expenses. If any installment of rent due from Tenant is not received by Landlord by **5:00pm on the third (3rd) day of the month**, or if a check is returned, regardless of cause, Tenant shall pay a late charge equal to six percent (6%) of such overdue amount and \$25.00 as a returned item fee, either or both of which shall be deemed additional rent.

Landlord and Tenant agree that these charges represent a fair and reasonable estimate of the costs Landlord may incur by reason of Tenant's late or NSF payment. Any Late Charge or NSF fee due shall be paid with the current installment of Rent. Landlord's acceptance of any Late Charge or NSF fee shall not constitute a waiver as to any default of Tenant. Landlord's right to collect a Late Charge or NSF fee shall not be deemed an extension of the date Rent is due under paragraph 1 or prevent Landlord from exercising any other rights and remedies under this Agreement and as provided by law. **The late charge will be strictly enforced without exception or waiver.**

LEGAL OBLIGATIONS

Tenant hereby acknowledges that he has a legal obligation to pay his rent on time each and every month regardless of any other debts or responsibilities he may have. Tenant agrees that he will be fully responsible for any back rent owed and acknowledges that defaulting on this lease agreement could result in a judgment against him and/or a lien filed against his current assets and/or earnings. Tenant further acknowledges and accepts that late payments or non-payments of rent may be filed with credit reporting agencies.

SERVICE FEES

Tenant agrees to pay \$50.00 for each notice delivered to the premises by Landlord or Landlord's representative for non-payment of rent, eviction, notice for a lease violation and notice when Tenant has terminated any Tenant paid utilities.

1.4 SECURITY DEPOSIT

SECURITY DEPOSIT

Tenant has paid security deposit of to be refunded as per California law. All or any portion of the security deposit may be used, as reasonably necessary, to: (i) cure Tenant's default in payment of Rent (which includes Late Charges, NSF fees or other sums due); (ii) repair damage, excluding ordinary wear and tear, caused by Tenant or by a guest or licensee of Tenant; (iii) clean Premises, if necessary, upon termination of the tenancy; and (iv) replace or return personal property or appurtenances. No interest will be paid on this money at any time unless required by law. **SECURITY DEPOSIT SHALL NOT BE USED BY TENANT IN LIEU OF PAYMENT OF LAST MONTH'S RENT.** If all or any portion of the security deposit is used during the tenancy, Tenant agrees to reinstate the total security deposit within five days after written notice is delivered to Tenant. Security deposit will not be returned until all Tenants have vacated the premises and all keys returned. Any security deposit returned by check shall be made out to all Tenants named on this Agreement, or as subsequently modified.

1.5 UTILITIES AND SERVICES

UTILITIES and SERVICES

Tenant is responsible for all utilities and services not specifically mentioned as being provided. The following utilities and services are

provided under the terms of this Lease Agreement: Trash

Landlord is only responsible for installing and maintaining one usable telephone jack and one telephone line to the premises. Tenant shall pay any cost for conversion from existing utility service provider. Tenant specifically authorizes Landlord to deduct necessary funds for Tenant's unpaid bills from Tenant's deposit in the event they remain unpaid.

Landlord does not guarantee or warrant that there will be no interruption of utility service. You shall contact the utility service provider in the event of an interruption of service. Landlord is not responsible for damages or food spoilage regardless of cause.

1.6 INSURANCE

TENANT INSURANCE

Personal property of Tenant and/or guests of Tenant are not insured by Landlord, manager or, if applicable, HOA against loss or damage due to fire, theft, vandalism, rain, water damage, pipe leaks, criminal or negligent acts of others, or any other cause. **Tenant agrees to carry renters insurance to protect Tenant from any such loss or damage and to name PURE Property Management as additional interest. Tenant agrees to maintain coverage throughout their occupancy and is required to produce evidence of continuing coverage upon renewal each period. Policy coverage shall include a minimum of \$100,000 liability if no pool and a minimum of \$500,000 if the premises has a pool. No additional insurance is required if the animal is a emotional support animal with verifiable documentation confirmed by PetScreening.com.** Tenant is hereby notified that in the event of a loss or damage to the premises or the property within, due to Tenant negligence or malfunction of Tenant's property (such as a washing machine), Tenant is responsible for all damage and loss to the Premises to include but not limited to: cleanup, repairs, and replacement expenses to restore property and premises to original condition prior to the loss. Failure to maintain personal liability insurance is an incurable breach of this Lease Agreement and may result in termination of tenancy and eviction and/or any other remedies provided by this Lease Agreement or California statute.

1.7 KEYS AND LOCKS

KEYS and CONTROLS

Tenant will be charged rent until all keys and controls, as listed below, are surrendered directly to Landlord. Tenants are not to leave keys at the property. If Tenant re-keys existing locks or opening devices, Tenant shall immediately deliver copies of all keys to Landlord. Tenant shall pay all costs and charges related to loss of any keys or opening devices. Tenant may not remove locks, even if installed by Tenant.

Total of Keys delivered to tenant:

All deadlocks, keys, window latches, doorknobs and any additional device required by local government ordinance, will be in working order when you move in.

Tenant shall be liable for the entire cost of all of key and lock replacements during tenancy. Tenant shall not change the locks or add a deadbolt lock without written consent.

All keys must be returned to us when you vacate the unit. Tenant will be charged for the cost of new locks and keys that are not returned.

1.8 AB 1482 COMPLIANCE

☒ NOTICE OF EXEMPTION FROM RENT CAP AND JUST CAUSE EVICTION LAW FOR SINGLE FAMILY RESIDENTIAL PROPERTY (INCLUDING CONDOMINIUMS AND UNITS IN PLANNED DEVELOPMENTS):

Landlord hereby notifies tenant that the Property is exempt from the rent cap provisions specified in Civil Code §1947.12 and the just cause eviction provisions specified in Civil Code §1946.2

This property is not subject to the rent limits imposed by Section 1947.12 of the Civil Code and is not subject to the just cause requirements of Section 1946.2 of the Civil Code. This property meets the requirements of Sections 1947.12(d)(5) and 1946.2(e)(8) of the Civil Code and the owner is not any of the following: (1) a real estate investment trust, as defined by Section 856 of the Internal Revenue Code; (2) a corporation; or (3) a limited liability company in which at least one member is a corporation.

-OR-

☐ NOTICE OF RENT CAP AND JUST CAUSE EVICTION LAW

Landlord hereby notifies tenant that the Property is subject to the rent cap provisions specified in Civil Code §1947.12 and the just cause eviction provisions specified in Civil Code §1946.2

California law limits the amount your rent can be increased. See Section 1947.12 of the Civil Code for more information. California law also provides that after all of the tenants have continuously and lawfully occupied the property for 12 months or more or at least one of the tenants has continuously and lawfully occupied the property for 24 months or more, a landlord must provide a statement of cause in any notice to terminate a tenancy. See Section 1946.2 of the Civil Code for more information. This lease may be terminated if the owner, their spouse, domestic partner, children, grandchildren, parents or grandparents unilaterally decide to occupy the referenced real property.

By initialing below, you acknowledge and agree to the terms in Section 1.

X FC X KR
Fabian M. Curry Kristal C. Robinson

2. Policies and Procedures

2.1 COMMUNITY POLICIES OR RULES

RULES AND REGULATIONS

Tenant agrees to comply with all CC&R's, and with the Rules and Regulations printed as an attachment to this document. Tenant further agrees to comply with any decisions made by homeowner associations that are posted on the premises or delivered to Tenant or adopted by homeowner association. Tenants understand they will be responsible for any fines or charges levied due to any violations.

PROHIBITIONS AGAINST VIOLATING LAWS AND CAUSING DISTURBANCES

Tenants shall be entitled to quiet enjoyment of the premises. Tenants and their guests or invitees shall not use the premises or adjacent areas in such a way as to: (1) violate any law or ordinance, including laws prohibiting the use, possession or sale of illegal drugs; (2) commit waste or nuisance; or (3) annoy, disturb, inconvenience or interfere with the quiet enjoyment and peace and quiet of any other nearby resident.

SATELLITE DISHES

Owner will permit Tenant to install a satellite dish for personal, private use on the premises under the following conditions:

1. The satellite dish must be one meter or less in diameter;
2. The satellite dish may only be installed on the inside balcony, patio or terrace that is under the exclusive control of Tenant. Said satellite dish, or any part thereof, shall not extend beyond the balcony, patio or terrace railing;
3. Tenant is specifically prohibited from making physical modifications to the premises and is prohibited from installing said satellite dish in the common areas of the premises, including but not limited to, outside walls, roofs, window sills, common balconies or stairways; **No running or attaching cabling on the exterior of the building for more than two (2) feet. Cabling must run in the crawl space or attic, not on the exterior of the building and not attached to the interior walls and run around the perimeter of any interior room. Tenant is responsible for removal of satellite dish and any cabling upon vacating the property in a manner that does not cause any damage to the property.**
4. Tenant shall not install said satellite dish in a manner which causes physical or structural damage to the premises, excluding ordinary wear and tear, including but not limited to, holes drilled through exterior walls or roofing.
5. Tenant shall install, maintain and remove said satellite dish in a manner that is consistent with industry standards and shall be liable for any damage or injury sustained as a result of the negligent installation, maintenance or removal of said satellite dish.
6. Tenant shall indemnify, defend and hold Owner and/or Owner's agent harmless for any damage or injury resulting from said negligence, including paying Owner's and/or Owner's agent's attorneys fees and costs.

2.2 RESIDENT SAFETY AND PROPERTY LOSS

MEGAN'S LAW

Registered Sex Offenders Notice: Pursuant to Section 290.46 of the Penal Code, information about specified registered sex offenders is made available to the public via an Internet Web site maintained by the Department of Justice at www.meganslaw.ca.gov. Depending on an offender's criminal history, this information will include either the address at which the offender resides or the community of residence and ZIP Code in which he or she resides.

SAFETY AND CRIME FREE

Tenant or any guest or resident under tenant's control, should not engage in any criminal activity in the residence or community.

In case of emergency, fire, accident, smoke or suspected criminal activity, dial 911 or call emergency personnel. Tenant should then contact the offices of Pure Property Management, Inc. (858-675-9515). Unless otherwise provided by law, Landlord is not liable to Tenant or any guests or occupants for injury, damage, or loss to person or property caused by criminal conduct of other persons, including theft, burglary, assault, vandalism, or other crimes.

2.3 PARKING

Tenant will park on the property at their own risk. If property is situated in an HOA, Tenant agrees to abide by any parking regulations currently in place or amended at a later date. If property is situated in an HOA community or if there is more than one dwelling onsite, Landlord may regulate the time, manner, and place of parking all vehicles, bicycles, boats trailers or recreational vehicles. Landlord or HOA may have unauthorized or illegally parked vehicles towed under an appropriate statute. Vehicles are prohibited from parking on the premises if they are inoperable, have no current license, take up more than one parking space, are parked in a marked handicap space without proper handicap insignia, block other vehicles from exiting, are parked in a space not dedicated to parking, including, but not limited to, grass, sidewalks, patio, and fire lanes.

2.4 ANIMALS & PETS

Unless otherwise provided in California Civil Code Section 54.2, or other law, no animal or pet shall be kept on or about the property without Landlord's prior written consent except as agreed to below. If an animal or pet is added to the household at any time during the tenancy, Tenant must first submit an application to Landlord's approved pet screening service together with all required documentation. Pet Screening application must be submitted and approved BEFORE the animal is brought into the home.

The following animal and/or pet(s) have been approved by Landlord to be maintained at the residence:

- Anubis, Miniature Doberman, 30.0 lbs, 1 year

Pets (including mammals, reptiles, birds, fish, and insects) are allowed only if Landlord has so authorized in writing. Tenant must remove an unauthorized animal within 24 hours of notice from Landlord or Tenant will be considered in default of this Lease Agreement. Landlord will authorize a service animal for a disabled person. Landlord may require a written statement from a person who can credibly speak to Resident's disability and need for the service animal. Dogs: if Landlord has approved a dog, Resident acknowledges that dogs must be on a leash and under control of a responsible person at all times when not inside the property or when present in a common area such as a shared patio, yard or being walked in the neighborhood. Resident is responsible for picking up after their dog and insuring proper disposal of animal waste.

The Tenant is fully responsible for any damage to the premises of Landlord that may result from the maintenance of a pet or animal. Tenant agrees to pay for any and all pest (flea) control services during and upon termination of tenancy if necessary. After vacating premises, Tenant further agrees to have carpets professionally cleaned and deodorized using a company approved by Landlord.

By initialing below, you acknowledge and agree to the terms in Section 2.

X FC X KR
Fabian M. Curry Kristal C. Robinson

3. Responsibilities

3.1 CONDITION OF PREMISES AND ALTERATIONS

ALTERATIONS

Tenant shall make no alterations, decorations, additions, or improvements in or to the property without Landlord's written consent. No tarps, awnings or temporary structures may be installed at anytime without written consent of Landlord or Landlord's agent. Tenant agrees that any holes created by large nails, screws, etc., used to hang pictures will be patched prior to move-out.

Tenant hereby agrees that any work or repairs that need to be done will be handled by competent professionals. If Tenant does any work themselves, they further agrees that they will be legally responsible for any mishap or damage he does either to himself or to the property. Landlord, his agents, and representatives will be held harmless and free from liability.

CONDITION OF PREMISES

Tenant agrees to: (1) keep the premises clean and sanitary and in good repair and, upon termination of the tenancy, to return the premises to Landlord in a condition identical to that which existed when Tenants took occupancy, except for normal wear and tear; Tenants agree to have all carpets, tile and hardwood floors professionally cleaned by a vendor approved by Landlord at termination of tenancy; (2) immediately notify Landlord of any defects or dangerous conditions in and about the premises of which they become aware; and (3) reimburse Landlord, on demand by Landlord, for the cost of any repairs to the premises damaged by Tenants or their guests or invitees through misuse or neglect.

Tenants acknowledge that they have examined the premises, including appliances, fixtures, carpets, drapes and paint, and agree to accept property in "as is" condition. Prior to or upon moving into the premises, Landlord will complete a Property Condition Report, which will be signed by Tenant and Tenant will be provided a copy of report. Tenant is given one (1) week from date of occupancy in which to complete a New Tenancy Condition Report to amend the inspection report. Failure to amend report within the one (1) week period shall constitute

acceptance of the Property Condition Report as written.

MAINTENANCE OF LAWNS AND LANDSCAPE

Tenant understands that at all times Tenant is responsible for keeping all outside areas free of garbage, debris, animal feces, and or any other unsightly item. **Whether or not landscape service is provided by owner, Tenant acknowledges they will be held liable for any damages caused by animals, neglect, abuse or lack of water.** If landscape service is provided by Owner, it is a Tenant responsibility, as the individual(s) residing at the property, to promptly report in writing:

- any change in the appearance of the landscape due to lack of water or over watering
- any prolonged failure of landscaping service to properly maintain the landscape in a well manicured state
- all required written notifications may be submitted via the Tenant Portal by initiating a maintenance request. Note: pictures can be attached to any maintenance request and are helpful in identifying/documenting issues.

If gardening service is not provided, Tenants acknowledge that they are responsible for maintaining the lawns and landscape by watering, weeding, fertilizing, mowing and shaping as necessary. Tenant's failure to maintain the lawns and landscaping to the Owner's satisfaction shall give Owner the right to hire someone to perform such maintenance and charge Tenant to cover the cost of such maintenance.

NON-LIABILITY

Tenant hereby agrees that any work or repairs that need to be done will be handled by competent professionals. If Tenant does any work themselves, they further agree that they will be legally responsible for any mishap or damage he does either to himself or to the property. Landlord, his agents, and representatives will be held harmless and free from liability.

3.2 SMOKE & CARBON MONOXIDE DETECTORS AND WATER HEATER CERTIFICATION

1. SMOKE DETECTORS: Landlord is aware that Section 13113.7 of the California Health and Safety Code requires that at the time a new tenancy is created, such residential dwelling in the State of California must have operable smoke detectors, approved, and listed by the State Fire Marshal and installed in accordance with the State Fire Marshall's regulations, which incorporate the California Building Code. The 1995 edition of the California Building Code provides:

"Sec. 310.9.1.4 Location within dwelling units. In dwelling units, a detector shall be installed in each sleeping room and at a point centrally located in the corridor or area giving access to each separate sleeping area. When the dwelling unit has more than one story and in dwellings with basements, a detector shall be installed on each story and in the basement. In dwelling units where a story or basement is split into two or more levels, the smoke detector shall be installed on the upper level, except that when the lower level contains a sleeping area, a detector shall be installed on each level. When sleeping rooms are on an upper level, the detector shall be placed at the ceiling of the upper level in close proximity to the stairway. In dwelling units where the ceiling height of a room open to the hallway serving the bedrooms exceeds that of the hallway by 24 inches (610 mm) or more, smoke detectors shall be installed in the hallway and in the adjacent room. Detectors shall sound an alarm audible in all sleeping areas of the dwelling unit in which they are located."

According to the State Fire Marshal, single-family dwellings which were built to building codes prior to the 1991 edition need to have the smoke detectors installed "at a point centrally located in the corridor or area giving access to each separate sleeping area." However, the State Fire Marshal strongly recommends that smoke detectors be installed in all sleeping rooms for the safety of the occupants.

2. CARBON MONOXIDE DETECTORS: § 13260 of the California Health and Safety Code requires that a carbon monoxide detector approved and listed with the State Fire Marshall be installed in all residential dwellings which contain "fossil-fuel burning devices" (such as a fireplace or gas heater) as well as in dwellings which have an attached garage.

3. WATER HEATER: Section 19211 of the California Health and Safety Code, as amended effective July 12, 1996, requires that "all new and replacement water heaters, and all existing residential water heaters shall be braced, anchored, or strapped to resist failing or horizontal displacement due to earthquake motion. At a minimum, any water heater shall be secured in accordance with the California Plumbing Code, or modifications made thereto" by a city or county. The Uniform Plumbing Code provides that "Strapping shall be at points within the upper one-third (1/3) and lower one-third (1/3) of its vertical dimensions. At the lower point, a minimum distance of four (4) inches (101.6 mm) shall be maintained above the controls with the strapping."

LANDLORD WARRANTS THAT THE PROPERTY HAS OPERABLE SMOKE DETECTORS AND CARBON MONOXIDE DETECTORS AS REQUIRED BY THE STATE FIRE MARSHAL'S REGULATIONS AND ANY LOCAL ORDINANCE, AND THAT THE HOT WATER HEATER(S) LOCATED IN THE ABOVE PROPERTY ARE SECURED AS REQUIRED BY LAW.

3.3 REQUESTS, REPAIRS, MALFUNCTIONS

TEMPORARY RELOCATION

Subject to local law, Tenant agrees, upon demand of Landlord, to temporarily vacate Premises for a reasonable period, to allow for fumigation (or other methods) to control wood destroying pests or organisms, or other repairs to premises. Tenant agrees to comply with all instructions and requirements necessary to prepare premises to accommodate pest control, fumigation or other work. Tenant shall only be entitled to a credit of rent equal to the per diem rent for the period of time Tenant is required to vacate premises.

DAMAGE TO PREMISES

If by no fault of Tenant, the subject property is totally or partially damaged or destroyed by fire, earthquake, accident or other casualty that render the property totally or partially uninhabitable, either Landlord or Tenant may terminate this Agreement by giving the other written notice. Rent shall be abated as of the date the property becomes totally or partially uninhabitable. The abated amount shall be the currently monthly rent pro-rated on a 30-day period. If the Agreement is not terminated, Landlord shall promptly repair the damage, and rent shall be reduced based on the extent to which the damage interferes with Tenant's reasonable use of the property. If damage occurs as a result of an act of Tenant or Tenant's guests, only Landlord shall have the right of termination and no reduction in rent shall be made.

REPAIR AND MAINTENANCE

Tenant shall properly use and operate all furnishings, appliances, electrical, gas and plumbing fixtures and keep them clean and sanitary. It is expected that Tenant, as the individual living in the property, will regularly check all areas close to a source of water (under sinks, behind toilets, walls adjacent to bathtubs and showers) to insure there are no unseen leaks. Tenant shall keep cabinetry underneath sinks reasonably clear of storage so area is accessible for visual monitoring. Tenant shall report any damage or problem immediately and agrees to pay for all repairs or replacements caused by Tenant, Tenant's guests or invitees negligence or misuse. Landlord complying with or responding to any oral request regarding security or non-security matters doesn't waive the strict requirement for written notices under this Lease Agreement. Tenant must promptly notify Landlord in writing of: water leaks; electrical problems; malfunctioning lights; broken or missing locks or latches; and other conditions that pose a hazard to the property, or health, or safety. Landlord will respond in accordance with state law and this Lease Agreement to repair or remedy the situation, as necessary. Landlord may turn off equipment and interrupt utilities as needed to avoid property damage or to perform work.

Under no circumstances will the Landlord be financially responsible for improvements or repairs made by Tenant, or caused to be made by Tenant, unless the Tenant was given written authorization to make repairs or improvements in advance.

DRAIN STOPPAGE

As of the date of this Agreement, Landlord warrants that the property's sewage drains are in good working order and that they will accept the normal household waste for which they were designed. They will not accept things such as cloth or disposable diapers, wipes of any kind (even those claiming they are "flushable"), sanitary napkins, tampons, children's toys, wads of toilet paper, accumulation of hair, grease, oil, table scraps, clothing, rags, sand, dirt, rocks, or newspapers. Tenants agree to pay for clearing the drains of any hard or soft blockages except those that a plumber, approved by Landlord, will attest in writing were caused by defective plumbing, tree roots, or acts of nature. A **hard blockage** is when some kind of debris – rock, a child's or dog's toy, etc. – finds its way into the drain line. A **soft blockage** has built up over time and is often made up of hair, grease, soap scum, toothpaste, shaving cream, hair products or similar.

3.4 RIGHT OF ENTRY AND INSPECTIONS

ACCESS TO PREMISES

Tenant shall make the property available to Landlord, Owner or Owner's representative for the purpose of entering to make necessary or agreed repairs, decorations, alterations, or improvements, or to supply necessary or agreed services, or to show premises to prospective or actual purchasers, tenants, mortgagees, lenders, appraisers, or contractors. Landlord and Tenant agree that 24 hour written notice shall be reasonable and sufficient notice. No written notice is required if Landlord and Tenant verbally agree to an entry for agreed services, repairs or showings if the date and time of entry are within one week of the verbal agreement.

3.5 MOVE-OUT

TENANT'S OBLIGATIONS UPON VACATING PREMISES

Upon termination of this Agreement, Tenant shall: 1) give Landlord all copies of keys or opening devices to premises, including any common areas; 2) vacate and surrender premises to Landlord, empty of all persons; 3) vacate any/all parking and/or storage space; 4) remove all debris; 5) give written notice to Landlord of Tenant's forwarding address. All alterations/improvements made by or caused to be made by Tenant, with or without Landlord's consent, become the property of Landlord upon termination. Landlord may charge Tenant for restoration of the premises to the condition it was in prior to any alterations/improvements.

Surrender, abandonment, and eviction ends your right of possession for all purposes and gives landlord the immediate right to: clean up, make repairs in, and re-rent the property; determine any security deposit deductions; and remove personal belongings left in the property, subject to applicable law. Surrender, abandonment, and eviction affect Tenant's rights to any belongings left in the property. Surrender, abandonment, and eviction do not affect Landlord's mitigation obligations.

Cleaning and Painting

Tenant is responsible for having all flooring surfaces professionally cleaned at the termination of their tenancy using a vendor that is approved by Landlord. If Tenant desires, Landlord will have flooring surfaces professionally cleaned and deduct the expense from Tenant's security deposit. Tenant must thoroughly clean the unit, including doors, windows, furniture, bathrooms, kitchen appliances, patios, balconies, garages, carports, and storage rooms. Tenant will be provided with Move-Out Instructions when Notice to Terminate Tenancy is received or given.

Interior paint is expected to last approximately three years. If the property was freshly painted when you moved in and paint is needed

again on your move-out, you will be charged:

- 100% if occupancy is 6 months or less
- 75% if occupancy was 6 months to 12 months
- 50% if occupancy is 13 months to 24 months
- 25% if occupancy is 25 months to 36 months

Any wall damage repair will be an additional charge regardless of length of occupancy. If additional labor is needed to remove stickers, crayon or other severe markings on walls or ceilings you will be responsible for the costs associated with removal.

Other Charges

Tenant is responsible for the following charges, if applicable: unpaid rent; unpaid utilities; unreimbursed service charges; repairs or other damages, excluding ordinary wear and tear; replacement cost of property that was in or attached to the residence and is missing; unreturned keys; missing or burned-out light bulbs; removing or rekeying unauthorized security devices or alarm systems; packing, removing, or storing property removed or stored; removing illegally parked vehicles; animal-related charges; government fees or fines against us for violation (by you, your occupant, or guest) of local ordinances relating to smoke detectors, false alarms, recycling, or other matters; late-payment and returned-check charges, plus attorney's fees, court costs, and filing fees actually paid; and other sums due under this Lease Contract.

Right to Pre-Move-Out Inspection and Repairs: After giving or receiving notice of termination of a tenancy, or before the end of a lease, Tenant has the right to request that an inspection of the premises take place prior to termination of the lease or rental. If Tenant requests such an inspection, Tenant shall be given an opportunity to remedy identified deficiencies prior to termination, consistent with the terms of this Agreement. Any repairs or alterations made to the premises as a result of this inspection shall be made at Tenant's expense. Repairs may be performed by Tenant or through others, who have adequate insurance and licenses and are approved by Landlord. The work shall comply with applicable law, including governmental permit, inspection and approval requirements. Repairs shall be performed in a good, skillful manner with materials of quality and appearance comparable to existing materials. It is understood that exact restoration of appearance or cosmetic items following all repairs may not be possible. Tenant shall: a) obtain receipts for repairs performed by others; b) prepare a written statement indicating the repairs performed by Tenant and the date of such repairs; and c) provide copies of receipts and statements to Landlord prior to termination. This paragraph does not apply when the tenancy is terminated pursuant to California Code of Civil Procedure 1161(2), (3), or (4).

Deposit Refund

Landlord will mail to Tenant's forwarding address or, if none is provided, to the last known address your security-deposit refund (less lawful deductions) and an itemized accounting of any deductions no later than 21 (twenty-one) days after the Lease Agreement termination and delivery of possession to us.

By initialing below, you acknowledge and agree to the terms in Section 3.

X FC X KR
Fabian M. Curry Kristal C. Robinson

4. General Clauses

4.1 TENANT ESTOPPEL

Tenant shall execute and return a tenant estoppel certificate delivered to Tenant by Landlord or Landlord's agent within 3 days after its receipt. Failure to comply with this requirement shall be deemed Tenant's acknowledgment that the tenant estoppel certificate is true and correct, and may be relied upon by a lender or purchaser.

4.2 SMOKE FREE ENVIRONMENT

Tenant agrees and acknowledges that the premises to be occupied by Tenant and members of Tenant's household have been designated as non-smoking. Tenant and members of Tenant's household shall not smoke anywhere in the residence, or on the premises, rented by Tenant nor shall Tenant permit any guests or visitors under the control of Tenant to smoke.

The term "smoking" means inhaling, exhaling, breathing, or carrying any lighted or heated cigar, cigarette, or other tobacco product or plant product in any manner or in any form. Smoking also includes use of an electronic cigarette, cigar or pipe.

Tenant acknowledges any violation of this provision that is discovered during or at the end of their tenancy will result in additional cleaning and painting charges.

4.3 RELEASE FROM LEASE CONTRACT

EARLY TERMINATION OF LEASE

In the event of termination by Tenant prior to the completion of the term of this Agreement, Tenant shall remain responsible for rent until a replacement resident is secured and takes possession of the property. Tenant will be responsible for any costs incurred by landlord including, but not limited to, leasing commissions, advertising expenses and costs necessary to ready premises for re-rental (such as painting, cleaning and changing of locks). Tenant specifically authorizes Landlord to withhold from security deposit any amounts that remain unpaid at the time notice is given.

Military Personnel Clause

Tenant may terminate the Lease Agreement if you qualify for the provisions under Servicemembers Civil Relief Act (SCRA). Tenant agrees to provide written notice of termination as provided in the SCRA and provide proof of orders qualifying Tenant for this provision.

Damage to Premises

If, by no fault of Tenant, Premises are totally or partially damaged or destroyed by fire, earthquake, accident, flooding or other casualty that render Premises totally or partially uninhabitable, either Landlord or Tenant may terminate this Agreement by giving the other written notice. Rent shall be abated as of the date Premises become totally or partially uninhabitable. The abated amount shall be the current monthly Rent prorated on a 30-day period. If the Agreement is not terminated, Landlord shall promptly repair the damage, and Rent shall be reduced based on the extent to which the damage interferes with Tenant's reasonable use of Premises. If damage occurs as a result of an act of Tenant or Tenant's guests, only Landlord shall have the right of termination, and no reduction in Rent shall be made.

4.4 RESIDENT CHANGE REQUEST

1. Only Tenants that are approved by Landlord and incorporated into a written lease agreement, rental agreement or lease addendum are allowed to live in the subject property. Approval must be obtained IN ADVANCE of a change in Residents under the terms of this lease agreement.
2. Final acceptance of a Tenant change requires approval of new resident(s) and a fully executed Lease Amendment to the Lease Agreement or a new Lease Agreement signed by all parties.
3. Tenant changes are only allowed for Lease Agreements that have all financial obligations current and have no other outstanding issues.
4. An administrative fee will be charged to process a resident change and will be due upon approval of the new resident(s). The administrative fee will be charged as follows:
 1. \$150.00 - 1 new tenant
 2. \$300.00 - 2 - 3 new tenant
 3. \$400.00 - 4 or more new tenant
5. The new prospective Tenant(s) must complete an application and the required application fee is excluded from the administrative fee.
6. Only approved applications will be considered for a tenant change.
7. Once a tenant change has been approved, a Lease Amendment will be drafted that removes the vacating resident(s) and adds the new resident(s) to the Lease Agreement.
8. Any transfer of security deposit funds must be negotiated between the new tenant(s), vacating resident(s) and the remaining tenant(s). The new tenant(s) takes on the obligation of returning the property to the condition documented as of the date of the original Lease Agreement.
9. All parties to the Lease Agreement remain jointly and severally liable to all Terms and Conditions of the Lease Agreement unless released in writing by Pure Property Management.

4.5 DEFAULT BY RESIDENT

Tenant will be in default if Tenant or any guest or occupant violates any terms of this Lease Agreement including but not limited to the following violations: failure to pay rent or other amounts that you owe when due; you or any guest or occupant violates community rules and regulations, or fire, safety, health, or criminal laws, or engages in dangerous behavior, regardless of whether or where arrest or conviction occurs; Tenant abandon the residence, gives incorrect or false answers in the rental application or provides false or fraudulent documentation requested Landlord; any illegal drugs or paraphernalia are found in the residence; Tenant or any guest or occupant engages in any prohibited conduct.

Holdover

Tenant or any occupant, invitee or guest must not hold over beyond the date contained in your move-out notice to vacate (or beyond a different move-out dated agreed to by the parties in writing). If a holdover occurs, then Landlord shall be entitled to damages for the hold-over period plus any expenses incurred due to the breach of this condition of the Lease Agreement.

Other Remedies

If rent is delinquent, Tenant immediately forfeits all rights to occupy the residence any longer, and if Tenant has not vacated the unit by the date specified in the Lease Agreement termination notice, Tenant is guilty of a misdemeanor. Each day of unlawful presence in the residence

constitutes a separate offense. Landlord may report unpaid amounts to credit agencies. Upon Tenant's default and early move-out, Tenant will pay any amounts stated to be rental discounts or concessions, in addition to other sums due. Upon Tenant's default, Landlord has all other legal remedies, including suit for Lease Agreement termination, possession, damages, rent, and all other monies due. Landlord may turn any returned checks over to law enforcement officials for prosecution according to law.

4.6 PROPOSITION 65 WARNING DISCLOSURE

THIS PROPERTY MAY CONTAIN CHEMICALS KNOWN TO THE STATE OF CALIFORNIA TO CAUSE CANCER AND BIRTH DEFECTS OR OTHER REPRODUCTIVE HARM

Office of Environmental Health Hazard Assessment

Proposition 65 in Plain Language

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WHAT IS PROPOSITION 65?

In November 1986, California voters overwhelmingly approved an initiative to address growing concerns about exposures to toxic chemicals. That initiative became the Safe Drinking Water and Toxic Enforcement Act of 1986, better known by its original name.

WHAT DOES PROPOSITION 65 REQUIRE?

Proposition 65 requires the Governor to publish a list of chemicals that are known to the State of California to cause cancer, birth defects or other reproductive harm. Agents that cause cancer are called carcinogens; those that cause birth defects or other reproductive harm are called reproductive toxicants. This list must be updated at least once a year. Over 700 chemicals have been listed as of March 10, 2000.

Proposition 65 imposes certain controls that apply to chemicals that appear on this list. These controls are designed to protect California's drinking water sources from contamination by these chemicals, to allow California consumers to make informed choices about the products they purchase, and to enable residents or workers to take whatever action they deem appropriate to protect themselves from exposure to these harmful chemicals.

Thus, Proposition 65 also provides a market-based incentive for manufacturers to remove listed chemicals from their products.

The benefits of the Proposition have their costs. Businesses have incurred expenses to test products, develop alternatives, reduce discharges, provide warnings and otherwise comply with the requirements of the proposition. Recognizing that compliance with the proposition comes with a price, Cal/EPA and the Office of Environmental Health Hazard Assessment (the lead agency for Proposition 65 implementation) have worked hard to minimize any unnecessary regulatory burdens and ensure that placement of a chemical on the list is done in accordance with rigorous science in an open public process.

WHAT KIND OF CHEMICALS ARE ON THE LIST?

The list contains a wide range of chemicals, including dyes, solvents, pesticides, drugs, food additives, and byproducts of certain processes. These chemicals may be naturally occurring or synthetic. Some of them are ingredients of common household products, others are specialty chemicals used in very specific industrial applications.

HOW DOES A CHEMICAL GET LISTED?

The State of California relies upon information that already exists in the scientific literature when determining the threat of a chemical. A chemical is listed if the "state's qualified experts" – two independent committees of scientists and health professionals appointed by the Governor – find that the chemical has been clearly shown to cause cancer or birth defects or other reproductive harm. In addition, a chemical can be listed if it has been classified as a carcinogen or as a reproductive toxicant by an organization that has been designated as "authoritative" for purposes of Proposition 65. For carcinogens, the organizations that have been designated as authoritative by OEHHA Science Advisory Board's Carcinogen Identification Committee as the U.S. Environmental Protection Agency, U.S. Food and Drug Administration, National Institute for Occupational Safety and Health, the National Toxicology Program and the International Agency for Research on Cancer. government.

The OEHHA Science Advisory Board's Developmental and Reproductive Toxicant Identification Committee have designated the following organizations as "authoritative bodies" for reproductive toxicants: the U.S. Environmental Protection Agency, U.S. Food and Drug Administration, National Institute for Occupational Safety and Health and International Agency for Research on Cancer (limited only to transplacental carcinogenicity). A chemical can also be listed if it is required to be labeled or identified as a carcinogen or as a reproductive toxicant by an agency of the state or federal

WHAT ARE THE RESPONSIBILITIES OF COMPANIES DOING BUSINESS IN CALIFORNIA?

Any company with ten or more employees that operates within the State or sells products in California must comply with the requirements of Proposition 65. Under Proposition 65, businesses are: prohibited from:

1. knowingly discharging listed chemicals into sources of drinking water; and

required to provide "clear and reasonable" warning before knowingly and intentionally exposing anyone to a listed chemical.

This warning can be given by a variety of means, such as by labeling a consumer product, by posting signs at the workplace, or by publishing notices in a newspaper.

WHAT DOES A WARNING MEAN?

If you are given a warning or if a warning is posted in a workplace, a facility or an area in your community, this means that the business issuing the warning knows or presumes that one or more listed chemicals is or may be present in its product, in its workplace, or in its emissions into the environment. Under the law, a warning must be given unless a business demonstrates that the potential exposure poses no significant risk.

For a chemical that is listed as a carcinogen, the “no significant risk” level is defined as the level which is calculated to result in not more than one excess case of cancer in 100,000 individuals exposed over a 70-year life span. In other words, if you are exposed to the chemical in question at this level every day for 70 years, theoretically it will increase your chances of getting cancer by no more than 1 case in 100,000 individuals so exposed.

For chemicals that are on the list as reproductive toxicants, the “no significant risk” level is defined as the level of exposure which, even if multiplied by 1,000, will not produce birth defects or other reproductive harm. That is, the level of exposure is below the “no observable effect level (NOEL),” divided by 1,000. (The “no observable effect level” is the highest dose level which has not been associated with an observable reproductive harm in humans or test animals.)

When a warning is given by a business, it means one of two things:

1. **the business has evaluated the exposure and has concluded that it exceeds the no significant risk level; or**
2. **the business has chosen to provide a warning simply based on its knowledge of or concern about the potential presence of a listed chemical, without attempting to evaluate the exposure. In these cases, exposure could be below the Proposition 65 level of concern, or could even be zero.**

Since businesses do not file reports with the State regarding what warnings they have issued and why, the State is not able to provide further information about any particular warning which you may have received. The business issuing the warning is the appropriate party to contact if you seek more specific information about the warning, such as what chemicals are involved, in what manner these chemicals are present, and how exposures to those chemicals may or may not occur.

WHAT HAS BEEN ACCOMPLISHED AS A RESULT OF PROPOSITION 65?

Proposition 65 has provided an effective mechanism for reducing certain exposures that may not have been adequately controlled under existing federal or state laws. For example, a Proposition 65 enforcement action has resulted in the reduction of the amount of lead in ceramic tableware. Air emissions of certain chemicals – including ethylene oxide, hexavalent chromium and chloroform – from facilities in California have been significantly reduced as a result of Proposition 65.

Certain chemicals on the list are no longer used as constituents of some commonly used products – for example, trichloroethylene is no longer used in most correction fluids, toluene has been removed from many nail care products, and foil caps on wine bottles no longer contain lead.

Proposition 65 has resulted in the extensive dissemination of important information regarding the dangers to the unborn child of drinking alcoholic beverages during pregnancy. The warnings about alcoholic beverage consumption during pregnancy are perhaps the most widespread and visible type of warning issued as a result of Proposition 65.

FOR FURTHER INFORMATION

Contact the Office of Environmental Health Hazard Assessment’s Proposition 65 Implementation Office at (916) 445-6900.

4.7 FLOOD DISCLOSURE

INFORMATION ABOUT FLOOD HAZARDS: Tenant is informed of the following:

- ☒ The Property is not located in a special flood hazard area or an area of potential flooding.

-OR-

☐ If checked, the Property is located in a special flood hazard area or an area of potential flooding. Property is deemed to be in a special flood hazard area or area of potential flooding if any of the following scenarios apply:

- A. The owner has actual knowledge of that fact.
- B. The owner has received written notice from any public agency stating that the Property is located in a special flood hazard area or an area of potential flooding.
- C. The Property is located in an area in which the owner’s mortgage holder requires the owner to carry flood insurance.
- D. The owner currently carries flood insurance.

2. Resident may obtain information about hazards, including flood hazards, that may affect the Property from the Office of Emergency Services at <http://myhazards.caloes.ca.gov/>.

3. Owner's insurance does not cover the loss of Resident's personal possessions and it is recommended that Resident consider purchasing renter's insurance and flood insurance to insure Resident's possessions from loss due to fire, flood, or other risk of loss.

4. Owner is not required to provide additional information concerning the flood hazards to the property and the information provided pursuant to this section (California Government Code section 8589.45) is deemed to inform Resident.

4.8 MOLD AND VENTILATION

It is our goal to maintain the highest quality living environment for our Tenants. Therefore, know that the Landlord or Landlord's agent has inspected the residence prior to lease and knows of no damp or wet building materials and knows of no mold or mildew contamination. Tenant is hereby notified that mold, however, can grow if the premises are not properly maintained or ventilated. If moisture is allowed to accumulate in the residence, it can cause mildew and mold to grow. It is important that Tenants regularly allow air to circulate in the residence. It is also important that Tenants keep the interior of the unit clean and that they promptly notify the Landlord of any leaks, moisture problems and/or mold growth.

Tenant acknowledges and agrees that Tenant has a responsibility to maintain the property in order to inhibit mold growth and that Tenant's agreement to do so is part of Tenant's material consideration in Landlord's agreement to rent the property to Tenant. Accordingly, Tenant agrees to:

1. Keep the residence free of dirt and debris that can harbor mold.
2. Immediately report to the Landlord any water intrusion, such as plumbing leaks, drips, or "sweating" pipes.
3. Immediately report to Landlord any overflows from bathroom, kitchen, or unit laundry facilities, especially in cases where the overflow may have permeated walls or cabinets. **IMPORTANT: Water can cause serious and extensive property damage. Tenant must contact property manager either in person or on the telephone to report the occurrence of a water leak and/or overflow. Taking appropriate action to speak with property manager -- or the after hours emergency team if outside of normal business hours -- is critical. Sending an email or leaving a voicemail is NOT sufficient notification. Contact property manager at 858-675-9515 for instructions after normal business hours.**
4. Report to the Landlord any significant mold growth on surfaces inside the premises.
5. Allow the Landlord to enter the unit to inspect and make necessary repairs.
6. Use exhaust fans, if any, in the bathroom(s) and kitchen while using those facilities and notify Landlord of any inoperative exhaust fans.
7. Use all reasonable care to close all windows and other openings in the premises to prevent outdoor water from penetrating into the interior Residence.
8. Clean and dry any visible moisture on windows, walls and other surfaces, including personal property, as soon as reasonably possible. (NOTE: Mold can grow on damp surfaces within 24 to 48 hours.)
9. To notify the Landlord of any problems with the air conditioning or heating systems.
10. To release, indemnify and hold harmless and forever discharge Landlord and Landlord's employees, agents, successors and assigns from any and all claims, liabilities or causes of action of any kind that Tenant, members of Tenant's household or Tenant's guests or invitees may have at any time against Landlord or Landlord's agents resulting from the presence of mold due to Tenant's failure to comply with this Mold and Ventilation.

4.9 BED BUGS & PESTS

BED BUGS & PESTS

1. "Pests" include (but are not limited to) bed bugs, cockroaches, mites, termites, mice, rats, other vermin and insects. Pest control of ants and non-poisonous spiders is a tenant responsibility.

2. **Landlord Inspection.** Landlord has inspected the Premises and is unaware of any pests in the Premises. At move-in, Tenant will complete and sign a Move-In/Move-Out Statement documenting the Premises' condition. If Tenant fails to report defects in the Move-In/Move-Out Statement, it will be presumed that the Premises have been delivered in good condition and free of pests.

3. **Tenant Responsibilities and Cooperation.** Resident agrees to cooperate with pest control efforts by:

- Keeping the Premises clean and uncluttered;
- Promptly advising Landlord of any pest infestations or pest control needs;
- Refraining from bringing bed bugs and other pests into the Premises, and inspecting all luggage, bedding, clothing, and personal property for bed bugs and other pests before move-in, returning home after traveling and/or bringing new items to the Premises. You will allow us to do the same upon request. If we have a concern about possible infestation, we may (but will not be obligated to) either prohibit you from bringing the item into the Premises or require you to have the item professionally treated at your expense before the item is brought into the Premises.
- Providing Landlord with access to Premises for Landlord's pest control assessments and pest control treatment;

- Cooperating with inspections to facilitate detection and treatment of pests, including providing requested information that is necessary to facilitate the detection and treatment of pests.

- Preparing the Premises for pest control treatment and/or vacating the Premises when necessary in connection with Landlord's pest control efforts. Tenant will comply with all instructions necessary to prepare the Premises for fumigation, testing/inspection or repair. Storage, cleaning, removal, or replacement of contaminated or potentially contaminated personal property will be Tenant's responsibility and at Tenant's expense unless the contamination was the result of Landlord's negligence, intentional wrongdoing or violation of law. Landlord is not responsible for any condition about which Landlord is not aware;

- Upon request by Landlord, promptly providing Landlord with copies of all records, documents, sampling data and other materials relating to the condition of the Premises.

4. If Tenant is Required to Vacate for Treatment. If requested by Landlord, Tenant agrees to temporarily vacate the Premises for fumigation, Premises testing/inspection, or repairs. If Tenant is required to vacate the Premises for treatment, Landlord may (but will not be required to) waive rent due for the period of Tenant's vacancy on a per diem basis. Tenant will not be entitled to rent waiver unless the contamination was the result of Landlord's negligence, intentional wrongdoing or violation of law.

5. Bed bugs

A. Information about Bed Bugs.

Bed bug Appearance: Bed bugs have six legs. Adult bed bugs have flat bodies about 1/4 of an inch in length. Their color can vary from red and brown to copper colored. Young bed bugs are very small. Their bodies are about 1/16 of an inch in length. They have almost no color. When a bed bug feeds, its body swells, may lengthen, and becomes bright red, sometimes making it appear to be a different insect. Bed bugs do not fly. They can either crawl or be carried from place to place on objects, people, or animals. Bed bugs can be hard to find and identify because they are tiny and try to stay hidden.

Life Cycle and Reproduction: An average bed bug lives for about 10 months. Female bed bugs lay one to five eggs per day. Bed bugs grow to full adulthood in about 21 days. Bed bugs can survive for months without feeding.

Bed bug Bites: Because bed bugs usually feed at night, most people are bitten in their sleep and do not realize they were bitten. A person's reaction to insect bites is an immune response and so varies from person to person. Sometimes the red welts caused by the bites will not be noticed until many days after a person was bitten, if at all.

Common signs and symptoms of a possible bed bug infestation:

- Small red to reddish brown fecal spots on mattresses, box springs, bed frames, mattresses, linens, upholstery, or walls.
- Molted bed bug skins, white, sticky eggs, or empty eggshells.
- Very heavily infested areas may have a characteristically sweet odor.
- Red, itchy bite marks, especially on the legs, arms, and other body parts exposed while sleeping. However, some people do not show bed bug lesions on their bodies even though bed bugs may have fed on them.

For more information, see the Internet Web sites of the United States Environmental Protection Agency and the National Pest Management Association.

Please report suspected bed bug infestations to us by contacting Pure Property Management at 858-675-9515 or the office located at 16516 Bernardo Center Drive, Suite 200, San Diego, CA.

B. Growing Problem. In the past, bed bug infestations were primarily associated with crowded and dilapidated housing. However, bed bug infestations are becoming more common and can be found even in first class hotel and living accommodations. The increase may be the result of increased human travel, movement of infested luggage and items, and changes in the pesticides available to control this pest. Bed bugs are transferred to new locations on people, their clothing, furniture, bedding, and luggage.

C. Inspection Before Bringing Items to Premises. To prevent bed bug infestations, Resident agrees that before move-in and/or bringing new items to the Premises, Resident will inspect all luggage, bedding, clothing, and personal property and to carefully scrutinize and consider the history of any used furniture before bringing it to the Premises. (Tenant should be mindful that furniture found discarded in or around dumpsters or elsewhere may have been discarded because of a bed bug infestation). Resident will allow Landlord to do the same upon request. If Landlord has a concern about possible infestation, Landlord may (but will not be obligated to) either prohibit Resident from bringing the item into the Premises and building or, require Tenant to have the item treated at Resident's expense before the item is brought into the Premises or building.

D. Tenant Notification to Landlord of Infestation. Tenant will immediately notify Landlord of any condition in the Premises indicating a bed bug infestation, such as itchy welts on Resident's skin; bed bugs (whether alive or dead); blood spots (either red or brown) or excrement spots (brown or black) on bedding or the bed; or a sweet odor.

E. Bed Bug Treatment. Bed bug treatment is challenging. It requires Tenant's cooperation, professional treatments over several weeks, and will require treatment and/or discarding of furniture, clothing, and personal property. Because of the difficulty of bed bug extermination, and because of the risk that bed bugs could spread into other units, Tenant agrees that if bed bugs are found, Tenant will

immediately contact Landlord, and will not attempt to personally exterminate bed bugs without professional assistance.

6. **Breach of Pest Control Obligations is a Material Breach.** Because pests may pose a risk to the health and safety of other residents, Tenant's breach of this Addendum is a material breach of the Lease.

7. **Tenant Obligation to Indemnify for Failure to Comply.** Tenant agrees to indemnify and hold Landlord harmless from any claims, losses, damages and expenses that Landlord incurs from the negligence of Tenant or Tenant's household members, guests or agents, or their failure to comply with this Addendum.

8. **Tenant Information.** Unless otherwise disclosed by Tenant, Tenant represents and warrants to Landlord that Tenant's current residence, furniture, clothing and personal property are currently free from pests. **If Tenant experienced a pest infestation in Tenant's current residence,** Tenant agrees to provide Pure Property Management with the following information:

1. Describe, in detail, how pest infestation affected residence, furniture, clothing or personal property.
2. Inform property manager if the infestation has not been professionally treated.
3. If the infestation has been professionally treated by a licensed pest control professional, and Tenant's current residence, furniture, clothing and personal property is free of pests. Tenant agrees to cooperate with Landlord's efforts to confirm this information, and will provide documentation regarding the pest control treatment and will allow Landlord to inspect Tenant's furniture, clothing and personal property (if Landlord chooses to inspect, but Landlord will have no obligation to do so) to confirm the absence of pests.

4.10 CONTRACT TERMINATION AND DISPUTE

This Lease Agreement may only be amended, waived, or terminated by Landlord's representatives in writing. Any oral promises, representations or agreements by our representatives shall not be considered legally binding. No action or omission of our representative will be considered a waiver of any subsequent violation, default, or time or place of performance. Landlord not enforcing or belatedly enforcing written notice requirement, rental due dates, acceleration, liens, or other rights shall not be considered a waiver under any circumstances.

HARASSMENT

Tenant and Tenant's Related Parties may not abuse, harass or threaten Landlord, or Landlord's Related Parties. Violation of this Agreement provision is a breach of this agreement and grounds for termination of Resident's tenancy. Resident and Resident's Related Parties may not unreasonably interfere with management functions. **Landlord's Related Parties:** Property Manager and the respective officers, managers, employees, affiliates, vendors, agents and representatives of both Landlord and Property Manager. **Tenant's Related Parties:** Other Co-Tenants, occupants, members of your household, your family, guests, agents and others under your control.

LEGAL FEES

In any legal action brought by either party to enforce the terms of this agreement or relating to the Premises, whether based in contract or in tort, the prevailing party will be entitled to reasonable attorney's fees and costs incurred, not to exceed \$1000.00, in connection with that action.

WAIVER OF JURY TRIAL

To minimize legal expenses and, to the extent allowed by law, Tenant and Landlord agree that a trial of any lawsuit based on statute common law, and/or related to this Lease Agreement shall be to a judge and not a jury.

FORCE MAJEURE

Landlord, and Landlord's agent or other representative, shall be excused from performance of obligations if prevented from fulfilling such obligations by an act of God, strikes, epidemics, war, acts of terrorism, riots, or other occurrence, which is beyond our control.

By initialing below, you acknowledge and agree to the terms in Section 4.

X FC X KR
Fabian M. Curry Kristal C. Robinson

5. Appliance Addendum

5.1 APPLIANCE ADDENDUM

The following appliances are property of the Owner, left for the use and convenience of the Residents:

Refrigerator : ☐ Owner to Maintain -OR- ☒ Owner does not intend to repair or replace.

*** Owner is not responsible for food spoilage regardless of cause.**

Washer: ☐ Owner to Maintain -OR- ☒ Owner does not intend to repair or replace

Dryer: ☐ Owner to Maintain -OR- ☒ Owner does not intend to repair or replace

By signing below, you acknowledge and agree to the terms in Section 5.

X *Fabian Curry*

Lessee

IP Address: 104.28.85.127
03/21/2024 11:24am PDT

X *Kristal Robinson*

Lessee

IP Address: 68.8.90.217
03/23/2024 12:13pm PDT

6. Lead Based Paint Addendum

6.1 LEAD BASED PAINT

The following terms and conditions are hereby incorporated in and made a part of the Lease Agreement between Douglas Steelhammer and Kristal C. Robinson, Fabian M. Curry on property known as

3019 Highlands Blvd
Spring Valley, CA 91977

LEAD WARNING STATEMENT: Housing built before 1978 may contain lead-based paint. Lead from paint, paint chips and paint dust can pose health hazards if not managed properly. Lead exposure is especially harmful to young children and pregnant women. Before renting pre-1978 housing, landlords and owners must disclose the presence of known lead-based paint and lead-based paint hazards in the dwelling. Resident(s) must also receive a federally approved pamphlet on lead poisoning prevention. It is up to Resident(s) to read the pamphlet. Absent an intentional misrepresentation, the existence of lead-based paint and/or lead-based paint hazards on the property or the premises, is not, by itself, cause to terminate or void a rental.

LANDLORD'S DISCLOSURE

☒ LANDLORD has no knowledge of lead-based paint and/or lead-based paint hazards in the housing other than the following:

☒ LANDLORD has no reports or records pertaining to lead-based paint and/or lead-based paint hazards in the housing other than the following which, previously or as an attachment to this addendum, have been provided to Resident(s):

Landlord, as an attachment to this addendum, has provided Tenant with the pamphlet *"Protect Your Family From Lead in Your Home"*.

In addition, Landlord or Landlord's agent has reviewed the above information and certifies that, to the best of their knowledge, the information provided is true and correct.

In addition, Resident(s) acknowledge and certify that all reports and records above indicated and the federally prescribed pamphlet *Protect Your Family from Lead in your Home* have been received.

By signing below, you acknowledge and agree to the terms in Section 6.

X *Fabian Curry*

Lessee

IP Address: 104.28.85.127
03/21/2024 11:25am PDT

X *Kristal Robinson*

Lessee

IP Address: 68.8.90.217
03/23/2024 12:13pm PDT

7. Pet/Animal Addendum

7.1 PET ADDENDUM

This Lease Addendum is an addition to and not a substitute for the Lease Agreement made between Douglas Steelhammer hereinafter referred to as Landlord) and Kristal C. Robinson, Fabian M. Curry (hereinafter referred to as Tenant) for the property situated at:
3019 Highlands Blvd
Spring Valley, CA 91977

Tenants' household maintains only those pets or animals as indicated in the Lease Agreement. It is agreed that no other pets or animals will be added or allowed on the premises at any time.

Both Landlord and Tenant agree to the following conditions:

- A thorough inspection will be conducted prior to commencement of lease agreement to document the condition of the residence
 - Any damage caused to the exterior of the residence as a result of the Tenant maintaining pets or animals will be cured and restored to the same condition at time Tenants took possession, at Tenants' sole expense.
 - Any damage caused to the interior of the residence as a result of the Tenant maintaining pets or animals will be cured and restored to original condition at Tenants' sole expense
 - Tenants specifically agree to clean any fecal matter from the premises daily and acknowledge that the premises must be cleaned prior to arrival of landscape workers if landscape services are provided by Landlord.
 - Upon termination of tenancy Landlord may hold \$200 of security deposit for a minimum of 2 weeks to determine if fleas are present and require treatment of the property. If fleas are present the amount of treatment will be deducted from the security deposit and Resident will be provided with invoice. If no fleas are present any refund of the amount withheld will be accounted for in the final disposition.
1. Tenant to allow PURE Property Management to complete up to two periodic property surveys per year. Proper notice will be provided to resident(s).

By signing below, you acknowledge and agree to the terms in Section 7.

X *Fabian Curry*

Lessee

IP Address: 104.28.85.127
03/21/2024 11:25am PDT

X *Kristal Robinson*

Lessee

IP Address: 68.8.90.217
03/23/2024 12:13pm PDT

8. Asbestos Addendum

8.1 ASBESTOS

This document is an Addendum and is part of the Lease Agreement dated 03/21/2024 between Douglas Steelhammer (Owner/Landlord) and Kristal C. Robinson, Fabian M. Curry (Tenants) for the premises located at
3019 Highlands Blvd
Spring Valley, CA 91977
. Premises were built prior to 1981

Landlord Check One:

☒ This property may contain asbestos.

-OR-

☐ This property contains asbestos. This hazardous substance is contained in some of the original building materials and in some of the products and materials used to maintain the property. Disturbance or damage to certain interior surfaces may increase the potential exposure to these substances.

1. Tenant or the Tenant's guest(s), employees and contractors shall not take or permit any action which in any way damages or disturbs the premises or any part thereof, including, but not limited to:

- piercing the surface of the ceiling by drilling or any other method
- hanging plants, mobiles or other objects from the ceiling
- attaching any fixtures to the ceiling
- allowing any objects to come in contact with the ceiling
- permitting water or any liquid, other than ordinary steam condensation, to come into contact with the ceiling
- painting, cleaning or undertaking any repairs of any portion of the ceiling
- replacing light fixtures
- undertaking any activity which results in building vibration that may cause damage to the ceiling

2. Tenant shall notify Landlord immediately in writing (1) if there is any damage to or deterioration of the ceiling in the premises or any portion thereof, including, without limitation, flaking, loose, cracking, hanging or dislodged material, water leaks, or stains in the ceiling, or (2) upon the occurrence of any of the events described in paragraph 1 above.

By signing below, you acknowledge and agree to the terms in Section 8.

X *Fabian Curry*

Lessee

IP Address: 104.28.85.127
03/21/2024 11:26am PDT

X *Kristal Robinson*

Lessee

IP Address: 68.8.90.217
03/23/2024 12:13pm PDT

9. Resident Benefit Package Addendum

9.1 RESIDENT BENEFIT PACKAGE

Resident and Landlord mutually agree that the Resident Benefit Package is defined as follows and variations of inclusions may exist due to property specifications. The total monthly cost of the Resident Benefits Package is all-inclusive, and no discounts will be given if any element(s) of the package are unavailable due to a lack of HVAC or other property-specific limitations.

Resident is required to maintain liability insurance at all times during occupancy. If Resident would like the required insurance included as part of the monthly cost, please choose PLAN A. If Resident would prefer to secure their own insurance, along with the necessary additional insured endorsements, and provides proof of their own insurance, choose PLAN B. Resident's liability insurance must contain a minimum of \$100,000 in Tenant Liability Coverage and a minimum of \$10,000 in Bodily Injury Liability Protection.

Please select Plan A or Plan B from the options listed below:

☒ **Plan A (\$39.00 per month) Includes:**

1. **Build your credit score:** Landlord provides credit reporting to cast positive payment history through a third-party service. Landlord is not responsible for any misrepresentation, erroneous reporting, and/or lack of reporting by the third-party service. Resident understands that any disputes will be handled directly between Resident and the third party service.
2. **Pinata Resident Rewards:** Resident acknowledges that a Resident rewards program is made available to them by Landlord. Rewards are to be accessed online and are activated at Resident's sole discretion through use of a mobile application provided by the rewards provider. Rewards will provide Resident with available rewards as a preferred customer of Landlord.
3. **Tenant Liability Insurance Policy:** (includes)
 - a. \$20,000 Renter Content Coverage (\$250 deductible) under the property management company master policy. Policy coverage is based on replacement cost.
 - b. \$100,000 Tenant Liability Insurance Coverage under Pure PM master policy.
 - c. \$10,000 Renters Bodily Injury Coverage (\$250 deductible).
4. **HVAC Filter Delivery:** Resident is responsible for replacing all A/C and heating system filters at the property on a quarterly basis. The only filters to be used at the property will be provided by Landlord and will be mailed directly to the property approximately every 90 days. Resident shall properly install the filter within two (2) days of receipt. Resident hereby acknowledges that the filters are dated to verify replacement and are subject to inspection by Landlord upon reasonable notice. If at any time Resident cannot properly or timely install a filter Resident shall immediately notify Landlord in writing. Resident's failure to properly and timely replace the filters is a material breach of this agreement and Landlord shall be entitled to exercise all rights and remedies it has against Resident and Resident shall be liable to Landlord for all damages to the property, A/C or heating system.
5. **\$1M ID Protection:** By executing this agreement, you are agreeing to Aura's IdentityGuard Terms of Service and Privacy Policy with respect to the identity theft protection service provided as part of the RBP, which can be found at www.identityguard.com.
6. **Late Fee/NSF Forgiveness:** One-time late fee or Non-Sufficient Fund forgiveness.
7. **Resident Portal:** Personalized Online Portal to conveniently submit all maintenance requests, payments and electronic documents by using your computer or smartphone.
8. **Emergency Maintenance Services:** Dedicated after-hours maintenance emergency number where you can call in and speak to a person who will assist with the situation.

☐ **Plan B (\$27.00 per month) Includes:**

1. **Build your credit score:** Landlord provides credit reporting to cast positive payment history through a third-party service. Landlord is not responsible for any misrepresentation, erroneous reporting, and/or lack of reporting by the third-party service. Resident understands that any disputes will be handled directly between Resident and the third-party service.
2. **Pinata Resident Rewards:** Resident acknowledges that a Resident rewards program is made available to them by Landlord. Rewards are to be accessed online and are activated at Resident's sole discretion through use of a mobile application provided by the rewards provider. Rewards will provide Resident with available rewards as a preferred customer of Landlord.
3. **HVAC Filter Delivery:** Resident is responsible for replacing all A/C and heating system filters at the property on a quarterly basis. The

only filters to be used at the property will be provided by Landlord and will be mailed directly to the property approximately every 90 days. Resident shall properly install the filter within two (2) days of receipt. Resident hereby acknowledges that the filters are dated to verify replacement and are subject to inspection by Landlord upon reasonable notice. If at any time Resident cannot properly or timely install a filter Resident shall immediately notify Landlord in writing. Resident's failure to properly and timely replace the filters is a material breach of this agreement and Landlord shall be entitled to exercise all rights and remedies it has against Resident and Resident shall be liable to Landlord for all damages to the property, A/C or heating system.

4. \$1M ID Protection: By executing this agreement, you are agreeing to Aura's IdentityGuard Terms of Service and Privacy Policy with respect to the identity theft protection service provided as part of the RBP, which can be found at www.identityguard.com.

5. Late Fee/NSF Forgiveness: One-time late fee or Non-Sufficient Fund forgiveness.

6. Resident Portal: Personalized Online Portal to conveniently submit all maintenance requests, payments and electronic documents by using your computer or smartphone.

7. Emergency Maintenance Services: Dedicated after-hours maintenance emergency number where you can call in and speak to a person who will assist with the situation.

Under Plan B, Resident is responsible to provide a certificate of insurance to the Property Manager upon lease signing and with all renewals. In the event a copy of the insurance policy or certificate of insurance is not provided when requested, Resident will AUTOMATICALLY be enrolled in PLAN A to ensure proper coverage.

By signing below, you acknowledge and agree to the terms in Section 9.

X *Fabian Curry*

Lessee

IP Address: 104.28.85.127
03/21/2024 11:28am PDT

X *Kristal Robinson*

Lessee

IP Address: 68.8.90.217
03/23/2024 12:13pm PDT

10. Security Deposit Replacement Program

10.1 SECURITY DEPOSIT REPLACEMENT PROGRAM

LEASE ADDENDUM (Security Deposit Replacement Program)

Security Deposit Waiver (Must Check One)

☐ Yes	\$58.00 per month	You waive payment of the \$ security deposit in lieu of the indicated monthly payment.
☐ NO		You agree to post the security deposit required by the Landlord.

This Lease Addendum is attached to and becomes a part of the Residential Lease Agreement ("Lease Agreement") between Landlord ("Landlord") and Renter ("You"). Both parties are bound by the terms of this Lease Addendum.

Your Lease Agreement also contractually requires that You post a Security Deposit to secure compliance with the terms and conditions of your Lease Agreement. The Security Deposit may be used by Landlord as reimbursement for amounts contractually recoverable from You under your Lease Agreement. In lieu of the Security Deposit, Landlord offers to waive the one-time Security Deposit in exchange for payment of the monthly fee indicated above for the term of the Lease Agreement. This waiver does not waive the requirement that You adhere to the terms and conditions of your Lease Agreement. In the event the Property Management contract is terminated, the monthly fee referenced herein will cease and the Property Owner may require You to post a Security Deposit.

I HAVE READ AND UNDERSTAND THIS ADDENDUM

By signing below, you acknowledge and agree to the terms in Section 10.

X *Fabian Curry*

Lessee

IP Address: 104.28.85.127
03/21/2024 11:32am PDT

X *Kristal Robinson*

Lessee

IP Address: 68.8.90.217
03/23/2024 12:14pm PDT

11. Solar Equipped

11.1 SOLAR EQUIPPED

Property is equipped with solar panels

Solar Fee: (if checked): ☐ due monthly

Additional provisions:

By signing below, you acknowledge and agree to the terms in Section 11.

X *Fabian Curry*

Lessee

IP Address: 104.28.85.127
03/21/2024 11:33am PDT

X *Kristal Robinson*

Lessee

IP Address: 68.8.90.217
03/23/2024 12:14pm PDT

16516 Bernardo Center Drive • Suite 200 • San Diego, CA 92128
(858) 792-5797

12. Trash

12.1 TRASH

Trash utility is currently paid by the owner. In the event City or HOA officials determine to change billing and charge each residence for these utilities Tenant will then be responsible for payment.

By signing below, you acknowledge and agree to the terms in Section 12.

X *Fabian Curry*

Lessee IP Address: 104.28.85.127
03/21/2024 11:33am PDT

X *Kristal Robinson*

Lessee IP Address: 68.8.90.217
03/23/2024 12:14pm PDT



Information on Dampness and Mold for Renters in California

Main points:

- Living in damp or moldy buildings increases the chances of respiratory problems like asthma.
- The critical warning signs are visible mold, water damage, damp materials, or mold smell.
- Dampness is needed for mold to grow, so if you control the dampness, you control the mold.
- Dampness or mold indoors may make housing substandard, per the California Health & Safety Code.



Beginning January 1, 2022, residential landlords shall provide this booklet to prospective residential tenants prior to entering the rental or lease agreement, in accordance with the 2001 Toxic Mold Protection Act (HSC #26148). This booklet, which explains the potential health risks and health impacts that may result from exposure to mold, was produced by the California Department of Public Health (CDPH) in 2020, in both English and Spanish versions.

Health Problems from Damp or Moldy Buildings

Living or working in damp or moldy buildings increases the risk of many harmful health problems, including:

- asthma attacks in people who already have asthma
- a new asthma diagnosis
- respiratory infections, such as bronchitis
- breathing symptoms, such as hay fever, sneezing, stuffy nose, sore throat, wheezing, breathing difficulty, or cough
- eczema or skin rash

Mold can affect people differently. How much a person is affected depends on how sensitive they are and on how much they are exposed. Damp or moldy buildings are linked to health problems in people even if they do not have allergies.

Signs of Dampness or Mold

Signs of dampness or mold that may cause health problems include:

- **visible mold** (regardless of color), such as on walls or ceilings, behind furniture or appliances, under carpets, or even hidden in areas not seen in the occupied areas of homes
- **mold odor**, noticed as an earthy, musty, or moldy smell
- **visible water damage**, such as water-stains or discoloration on walls or ceilings, peeling or bubbled paint, warped floors, or rotting wood
- **damp or moist materials**, including condensation on windows or walls

Any one of these signs indicates increased risks to health, and the more that any of them are present, the greater the risk of health problems. Tests that identify the types of mold or the amounts of mold in buildings are not useful in telling us about the health risks. This is *why CDPH does not recommend testing for mold, such as measuring mold spores in the air.*



Causes of Building Dampness that Can Allow Mold to Grow

The dampness that is necessary for indoor mold to grow can come from either inside or outside a building.

Indoor sources include:

- leaking or burst water pipes, for instance under sinks inside walls
- not enough venting to the outside by open windows or exhaust fans in places where water is used or moisture is produced (for example, bathrooms, laundry areas, kitchens, and water heaters)
- condensation (water droplets) on cold surfaces, including windows

Outdoor sources include:

- water coming in through leaky roofs or poorly-sealed windows, or from flooding
- damp, exposed dirt in crawl spaces
- outdoor surfaces that slope and drain water toward a building, including from a downspout



Fixing Dampness and Mold Problems

The California Health & Safety Code (HSC §17920.3) says that when dampness or visible mold (or certain other conditions) in a home is a hazard to the health of occupants, the home is *substandard* and the property owner must fix the conditions. The Code excludes mold that is “minor and found on surfaces that accumulate moisture as part of their properly functioning and intended use.”

CDPH recommends fixing dampness and mold problems as follows:

- identifying and correcting the source of any water that may allow mold to grow
- rapid drying or removal of damp materials
- cleaning or removing mold and moldy materials as rapidly and safely as possible

Note: if a moldy area is simply bleached, cleaned, or painted over—without fixing the source of the dampness—the mold is likely to grow again.

Renters in California

The California Health & Safety Code requires property owners to provide a rental unit that is safe and healthy for the people living in it. Prospective renters should look for obvious conditions that show dampness or mold, and also less obvious signs like water leaks under the kitchen and bathroom sinks or moldy odor in a sealed-up home. Also look for conditions likely to cause future problems, like a bathroom that has no working vent fan or no window that opens, or a clothes dryer without an outside vent.

For renters who suspect there is dampness or mold:

1. Tell the property owner or manager. Early detection and correction of the dampness and mold problems can reduce the risks to your health and prevent the problem from getting worse.
2. If your property owner will not respond to your concerns in a reasonable amount of time, contact your local (city or county) code enforcement agency and ask for a code enforcement officer to inspect for violations. Many dampness or mold problems in rental homes are the responsibility of the property owner and must be addressed by them. However, a code enforcement officer may determine that dampness or mold in a building results from a tenant's actions or inactions – for instance, not using available bathroom ventilation during showers.
3. If the local inspector determines there is a violation, they can require the property owner to correct the problem.

Additional Resources

For general information on dampness and mold and a list of local code enforcement agencies, with a focus on dampness and mold, see www.cdph.ca.gov/iaq/mold. To see an animated video series, Mold in the Home, visit www.cdph.ca.gov/mold.

Property owners must provide a rental unit that is safe and healthy for the people living in it.

Tenants must notify property owners of any dampness or mold problems.

13

2022_Mold_Booklet.pdf

X *Fabian Curry*

Lessee

IP Address: 104.28.85.127
03/21/2024 11:33am PDT

X *Kristal Robinson*

Lessee

IP Address: 68.8.90.217
03/23/2024 12:14pm PDT



Protect Your Family From Lead in Your Home



United States
Environmental
Protection Agency



United States
Consumer Product
Safety Commission



United States
Department of Housing
and Urban Development

Simple Steps to Protect Your Family from Lead Hazards

If you think your home has lead-based paint:

- Don't try to remove lead-based paint yourself.
- Always keep painted surfaces in good condition to minimize deterioration.
- Get your home checked for lead hazards. Find a certified inspector or risk assessor at [epa.gov/lead](https://www.epa.gov/lead).
- Talk to your landlord about fixing surfaces with peeling or chipping paint.
- Regularly clean floors, window sills, and other surfaces.
- Take precautions to avoid exposure to lead dust when remodeling.
- When renovating, repairing, or painting, hire only EPA- or state-approved Lead-Safe certified renovation firms.
- Before buying, renting, or renovating your home, have it checked for lead-based paint.
- Consult your health care provider about testing your children for lead. Your pediatrician can check for lead with a simple blood test.
- Wash children's hands, bottles, pacifiers, and toys often.
- Make sure children eat healthy, low-fat foods high in iron, calcium, and vitamin C.
- Remove shoes or wipe soil off shoes before entering your house.

Lead Gets into the Body in Many Ways

Adults and children can get lead into their bodies if they:

- Breathe in lead dust (especially during activities such as renovations, repairs, or painting that disturb painted surfaces).
- Swallow lead dust that has settled on food, food preparation surfaces, and other places.
- Eat paint chips or soil that contains lead.

Lead is especially dangerous to children under the age of 6.

- At this age, children's brains and nervous systems are more sensitive to the damaging effects of lead.
- Children's growing bodies absorb more lead.
- Babies and young children often put their hands and other objects in their mouths. These objects can have lead dust on them.



Women of childbearing age should know that lead is dangerous to a developing fetus.

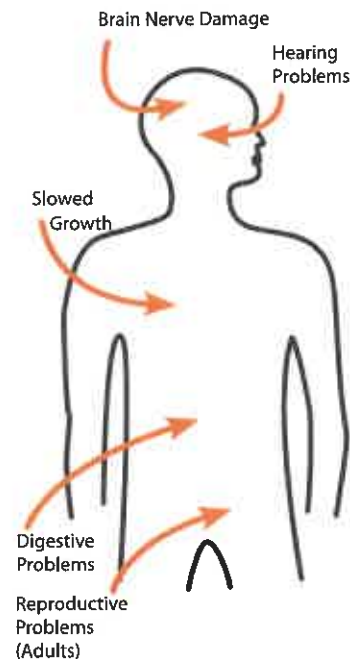
- Women with a high lead level in their system before or during pregnancy risk exposing the fetus to lead through the placenta during fetal development.

Health Effects of Lead

Lead affects the body in many ways. It is important to know that even exposure to low levels of lead can severely harm children.

In children, exposure to lead can cause:

- Nervous system and kidney damage
- Learning disabilities, attention-deficit disorder, and decreased intelligence
- Speech, language, and behavior problems
- Poor muscle coordination
- Decreased muscle and bone growth
- Hearing damage



While low-lead exposure is most common, exposure to high amounts of lead can have devastating effects on children, including seizures, unconsciousness, and in some cases, death.

Although children are especially susceptible to lead exposure, lead can be dangerous for adults, too.

In adults, exposure to lead can cause:

- Harm to a developing fetus
- Increased chance of high blood pressure during pregnancy
- Fertility problems (in men and women)
- High blood pressure
- Digestive problems
- Nerve disorders
- Memory and concentration problems
- Muscle and joint pain

Check Your Family for Lead

Get your children and home tested if you think your home has lead.

Children's blood lead levels tend to increase rapidly from 6 to 12 months of age, and tend to peak at 18 to 24 months of age.

Consult your doctor for advice on testing your children. A simple blood test can detect lead. Blood lead tests are usually recommended for:

- Children at ages 1 and 2
- Children or other family members who have been exposed to high levels of lead
- Children who should be tested under your state or local health screening plan

Your doctor can explain what the test results mean and if more testing will be needed.

Where Lead-Based Paint Is Found

In general, the older your home or childcare facility, the more likely it has lead-based paint.¹

Many homes, including private, federally-assisted, federally-owned housing, and childcare facilities built before 1978 have lead-based paint. In 1978, the federal government banned consumer uses of lead-containing paint.²

Learn how to determine if paint is lead-based paint on page 7.

Lead can be found:

- In homes and childcare facilities in the city, country, or suburbs,
- In private and public single-family homes and apartments,
- On surfaces inside and outside of the house, and
- In soil around a home. (Soil can pick up lead from exterior paint or other sources, such as past use of leaded gas in cars.)

Learn more about where lead is found at [epa.gov/lead](https://www.epa.gov/lead).

¹ "Lead-based paint" is currently defined by the federal government as paint with lead levels greater than or equal to 1.0 milligram per square centimeter (mg/cm²), or more than 0.5% by weight.

² "Lead-containing paint" is currently defined by the federal government as lead in new dried paint in excess of 90 parts per million (ppm) by weight.

Identifying Lead-Based Paint and Lead-Based Paint Hazards

Deteriorated lead-based paint (peeling, chipping, chalking, cracking, or damaged paint) is a hazard and needs immediate attention. **Lead-based paint** may also be a hazard when found on surfaces that children can chew or that get a lot of wear and tear, such as:

- On windows and window sills
- Doors and door frames
- Stairs, railings, banisters, and porches

Lead-based paint is usually not a hazard if it is in good condition and if it is not on an impact or friction surface like a window.

Lead dust can form when lead-based paint is scraped, sanded, or heated. Lead dust also forms when painted surfaces containing lead bump or rub together. Lead paint chips and dust can get on surfaces and objects that people touch. Settled lead dust can reenter the air when the home is vacuumed or swept, or when people walk through it. EPA currently defines the following levels of lead in dust as hazardous:

- 10 micrograms per square foot ($\mu\text{g}/\text{ft}^2$) and higher for floors, including carpeted floors
- 100 $\mu\text{g}/\text{ft}^2$ and higher for interior window sills

Lead in soil can be a hazard when children play in bare soil or when people bring soil into the house on their shoes. EPA currently defines the following levels of lead in soil as hazardous:

- 400 parts per million (ppm) and higher in play areas of bare soil
- 1,200 ppm (average) and higher in bare soil in the remainder of the yard

Remember, lead from paint chips—which you can see—and lead dust—which you may not be able to see—both can be hazards.

The only way to find out if paint, dust, or soil lead hazards exist is to test for them. The next page describes how to do this.

Checking Your Home for Lead

You can get your home tested for lead in several different ways:

- A lead-based paint **inspection** tells you if your home has lead-based paint and where it is located. It won't tell you whether your home currently has lead hazards. A trained and certified testing professional, called a lead-based paint inspector, will conduct a paint inspection using methods, such as:
 - Portable x-ray fluorescence (XRF) machine
 - Lab tests of paint samples
- A **risk assessment** tells you if your home currently has any lead hazards from lead in paint, dust, or soil. It also tells you what actions to take to address any hazards. A trained and certified testing professional, called a risk assessor, will:
 - Sample paint that is deteriorated on doors, windows, floors, stairs, and walls
 - Sample dust near painted surfaces and sample bare soil in the yard
 - Get lab tests of paint, dust, and soil samples
- A combination inspection and risk assessment tells you if your home has any lead-based paint and if your home has any lead hazards, and where both are located.



Be sure to read the report provided to you after your inspection or risk assessment is completed, and ask questions about anything you do not understand.

Checking Your Home for Lead, continued

In preparing for renovation, repair, or painting work in a pre-1978 home, Lead-Safe Certified renovators (see page 12) may:

- Take paint chip samples to determine if lead-based paint is present in the area planned for renovation and send them to an EPA-recognized lead lab for analysis. In housing receiving federal assistance, the person collecting these samples must be a certified lead-based paint inspector or risk assessor
- Use EPA-recognized tests kits to determine if lead-based paint is absent (but not in housing receiving federal assistance)
- Presume that lead-based paint is present and use lead-safe work practices

There are state and federal programs in place to ensure that testing is done safely, reliably, and effectively. Contact your state or local agency for more information, visit [epa.gov/lead](https://www.epa.gov/lead), or call **1-800-424-LEAD (5323)** for a list of contacts in your area.³

³ Hearing- or speech-challenged individuals may access this number through TTY by calling the Federal Relay Service at 1-800-877-8339.

What You Can Do Now to Protect Your Family

If you suspect that your house has lead-based paint hazards, you can take some immediate steps to reduce your family's risk:

- If you rent, notify your landlord of peeling or chipping paint.
- Keep painted surfaces clean and free of dust. Clean floors, window frames, window sills, and other surfaces weekly. Use a mop or sponge with warm water and a general all-purpose cleaner. (Remember: never mix ammonia and bleach products together because they can form a dangerous gas.)
- Carefully clean up paint chips immediately without creating dust.
- Thoroughly rinse sponges and mop heads often during cleaning of dirty or dusty areas, and again afterward.
- Wash your hands and your children's hands often, especially before they eat and before nap time and bed time.
- Keep play areas clean. Wash bottles, pacifiers, toys, and stuffed animals regularly.
- Keep children from chewing window sills or other painted surfaces, or eating soil.
- When renovating, repairing, or painting, hire only EPA- or state-approved Lead-Safe Certified renovation firms (see page 12).
- Clean or remove shoes before entering your home to avoid tracking in lead from soil.
- Make sure children eat nutritious, low-fat meals high in iron, and calcium, such as spinach and dairy products. Children with good diets absorb less lead.

Reducing Lead Hazards

Disturbing lead-based paint or removing lead improperly can increase the hazard to your family by spreading even more lead dust around the house.

- In addition to day-to-day cleaning and good nutrition, you can **temporarily** reduce lead-based paint hazards by taking actions, such as repairing damaged painted surfaces and planting grass to cover lead-contaminated soil. These actions are not permanent solutions and will need ongoing attention.
- You can minimize exposure to lead when renovating, repairing, or painting by hiring an EPA- or state-certified renovator who is trained in the use of lead-safe work practices. If you are a do-it-yourselfer, learn how to use lead-safe work practices in your home.
- To remove lead hazards permanently, you should hire a certified lead abatement contractor. Abatement (or permanent hazard elimination) methods include removing, sealing, or enclosing lead-based paint with special materials. Just painting over the hazard with regular paint is not permanent control.



Always use a certified contractor who is trained to address lead hazards safely.

- Hire a Lead-Safe Certified firm (see page 12) to perform renovation, repair, or painting (RRP) projects that disturb painted surfaces.
- To correct lead hazards permanently, hire a certified lead abatement contractor. This will ensure your contractor knows how to work safely and has the proper equipment to clean up thoroughly.

Certified contractors will employ qualified workers and follow strict safety rules as set by their state or by the federal government.

Reducing Lead Hazards, continued

If your home has had lead abatement work done or if the housing is receiving federal assistance, once the work is completed, dust cleanup activities must be conducted until clearance testing indicates that lead dust levels are below the following levels:

- 40 micrograms per square foot ($\mu\text{g}/\text{ft}^2$) for floors, including carpeted floors
- 250 $\mu\text{g}/\text{ft}^2$ for interior windows sills
- 400 $\mu\text{g}/\text{ft}^2$ for window troughs

For help in locating certified lead abatement professionals in your area, call your state or local agency (see pages 14 and 15), or visit epa.gov/lead, or call 1-800-424-LEAD.

Renovating, Repairing or Painting a Home with Lead-Based Paint

If you hire a contractor to conduct renovation, repair, or painting (RRP) projects in your pre-1978 home or childcare facility (such as pre-school and kindergarten), your contractor must:

- Be a Lead-Safe Certified firm approved by EPA or an EPA-authorized state program
- Use qualified trained individuals (Lead-Safe Certified renovators) who follow specific lead-safe work practices to prevent lead contamination
- Provide a copy of EPA's lead hazard information document, *The Lead-Safe Certified Guide to Renovate Right*



RRP contractors working in pre-1978 homes and childcare facilities must follow lead-safe work practices that:

- **Contain the work area.** The area must be contained so that dust and debris do not escape from the work area. Warning signs must be put up, and plastic or other impermeable material and tape must be used.
- **Avoid renovation methods that generate large amounts of lead-contaminated dust.** Some methods generate so much lead-contaminated dust that their use is prohibited. They are:
 - Open-flame burning or torching
 - Sanding, grinding, planing, needle gunning, or blasting with power tools and equipment not equipped with a shroud and HEPA vacuum attachment
 - Using a heat gun at temperatures greater than 1100°F
- **Clean up thoroughly.** The work area should be cleaned up daily. When all the work is done, the area must be cleaned up using special cleaning methods.
- **Dispose of waste properly.** Collect and seal waste in a heavy duty bag or sheeting. When transported, ensure that waste is contained to prevent release of dust and debris.

To learn more about EPA's requirements for RRP projects, visit [epa.gov/getleadsafe](https://www.epa.gov/getleadsafe), or read *The Lead-Safe Certified Guide to Renovate Right*.

Other Sources of Lead

Lead in Drinking Water

The most common sources of lead in drinking water are lead pipes, faucets, and fixtures.

Lead pipes are more likely to be found in older cities and homes built before 1986.

You can't smell or taste lead in drinking water.

To find out for certain if you have lead in drinking water, have your water tested.

Remember older homes with a private well can also have plumbing materials that contain lead.

Important Steps You Can Take to Reduce Lead in Drinking Water

- Use only cold water for drinking, cooking and making baby formula. Remember, boiling water does not remove lead from water.
- Before drinking, flush your home's pipes by running the tap, taking a shower, doing laundry, or doing a load of dishes.
- Regularly clean your faucet's screen (also known as an aerator).
- If you use a filter certified to remove lead, don't forget to read the directions to learn when to change the cartridge. Using a filter after it has expired can make it less effective at removing lead.

Contact your water company to determine if the pipe that connects your home to the water main (called a service line) is made from lead. Your area's water company can also provide information about the lead levels in your system's drinking water.

For more information about lead in drinking water, please contact EPA's Safe Drinking Water Hotline at 1-800-426-4791. If you have other questions about lead poisoning prevention, call 1-800 424-LEAD.*

Call your local health department or water company to find out about testing your water, or visit [epa.gov/safewater](https://www.epa.gov/safewater) for EPA's lead in drinking water information. Some states or utilities offer programs to pay for water testing for residents. Contact your state or local water company to learn more.

* Hearing- or speech-challenged individuals may access this number through TTY by calling the Federal Relay Service at 1-800-877-8339.

Other Sources of Lead, continued

- **Lead smelters** or other industries that release lead into the air.
- **Your job.** If you work with lead, you could bring it home on your body or clothes. Shower and change clothes before coming home. Launder your work clothes separately from the rest of your family's clothes.
- **Hobbies** that use lead, such as making pottery or stained glass, or refinishing furniture. Call your local health department for information about hobbies that may use lead.
- Old **toys** and **furniture** may have been painted with lead-containing paint. Older toys and other children's products may have parts that contain lead.⁴
- Food and liquids cooked or stored in **lead crystal** or **lead-glazed pottery or porcelain** may contain lead.
- Folk remedies, such as "**greta**" and "**azarcon**," used to treat an upset stomach.

⁴ In 1978, the federal government banned toys, other children's products, and furniture with lead-containing paint. In 2008, the federal government banned lead in most children's products. The federal government currently bans lead in excess of 100 ppm by weight in most children's products.

For More Information

The National Lead Information Center

Learn how to protect children from lead poisoning and get other information about lead hazards on the Web at epa.gov/lead and hud.gov/lead, or call **1-800-424-LEAD (5323)**.

EPA's Safe Drinking Water Hotline

For information about lead in drinking water, call **1-800-426-4791**, or visit epa.gov/safewater for information about lead in drinking water.

Consumer Product Safety Commission (CPSC) Hotline

For information on lead in toys and other consumer products, or to report an unsafe consumer product or a product-related injury, call **1-800-638-2772**, or visit CPSC's website at cpsc.gov or saferproducts.gov.

State and Local Health and Environmental Agencies

Some states, tribes, and cities have their own rules related to lead-based paint. Check with your local agency to see which laws apply to you. Most agencies can also provide information on finding a lead abatement firm in your area, and on possible sources of financial aid for reducing lead hazards. Receive up-to-date address and phone information for your state or local contacts on the Web at epa.gov/lead, or contact the National Lead Information Center at **1-800-424-LEAD**.

Hearing- or speech-challenged individuals may access any of the phone numbers in this brochure through TTY by calling the toll-free Federal Relay Service at **1-800-877-8339**.

U. S. Environmental Protection Agency (EPA) Regional Offices

The mission of EPA is to protect human health and the environment. Your Regional EPA Office can provide further information regarding regulations and lead protection programs.

Region 1 (Connecticut, Massachusetts, Maine, New Hampshire, Rhode Island, Vermont)

Regional Lead Contact
U.S. EPA Region 1
5 Post Office Square, Suite 100, OES 05-4
Boston, MA 02109-3912
(888) 372-7341

Region 2 (New Jersey, New York, Puerto Rico, Virgin Islands)

Regional Lead Contact
U.S. EPA Region 2
2890 Woodbridge Avenue
Building 205, Mail Stop 225
Edison, NJ 08837-3679
(732) 906-6809

Region 3 (Delaware, Maryland, Pennsylvania, Virginia, DC, West Virginia)

Regional Lead Contact
U.S. EPA Region 3
1650 Arch Street
Philadelphia, PA 19103
(215) 814-2088

Region 4 (Alabama, Florida, Georgia, Kentucky, Mississippi, North Carolina, South Carolina, Tennessee)

Regional Lead Contact
U.S. EPA Region 4
AFC Tower, 12th Floor, Air, Pesticides & Toxics
61 Forsyth Street, SW
Atlanta, GA 30303
(404) 562-8998

Region 5 (Illinois, Indiana, Michigan, Minnesota, Ohio, Wisconsin)

Regional Lead Contact
U.S. EPA Region 5 (LL-17J)
77 West Jackson Boulevard
Chicago, IL 60604-3666
(312) 353-3808

Region 6 (Arkansas, Louisiana, New Mexico, Oklahoma, Texas, and 66 Tribes)

Regional Lead Contact
U.S. EPA Region 6
1445 Ross Avenue, 12th Floor
Dallas, TX 75202-2733
(214) 665-2704

Region 7 (Iowa, Kansas, Missouri, Nebraska)

Regional Lead Contact
U.S. EPA Region 7
11201 Renner Blvd.
Lenexa, KS 66219
(800) 223-0425

Region 8 (Colorado, Montana, North Dakota, South Dakota, Utah, Wyoming)

Regional Lead Contact
U.S. EPA Region 8
1595 Wynkoop St.
Denver, CO 80202
(303) 312-6966

Region 9 (Arizona, California, Hawaii, Nevada)

Regional Lead Contact
U.S. EPA Region 9 (CMD-4-2)
75 Hawthorne Street
San Francisco, CA 94105
(415) 947-4280

Region 10 (Alaska, Idaho, Oregon, Washington)

Regional Lead Contact
U.S. EPA Region 10 (20-C04)
Air and Toxics Enforcement Section
1200 Sixth Avenue, Suite 155
Seattle, WA 98101
(206) 553-1200

Consumer Product Safety Commission (CPSC)

The CPSC protects the public against unreasonable risk of injury from consumer products through education, safety standards activities, and enforcement. Contact CPSC for further information regarding consumer product safety and regulations.

CPSC

4330 East West Highway
Bethesda, MD 20814-4421
1-800-638-2772
cpsc.gov or saferproducts.gov

U. S. Department of Housing and Urban Development (HUD)

HUD's mission is to create strong, sustainable, inclusive communities and quality affordable homes for all. Contact to Office of Lead Hazard Control and Healthy Homes for further information regarding the Lead Safe Housing Rule, which protects families in pre-1978 assisted housing, and for the lead hazard control and research grant programs.

HUD

451 Seventh Street, SW, Room 8236
Washington, DC 20410-3000
(202) 402-7698
hud.gov/lead

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U. S. EPA Washington DC 20460
U. S. CPSC Bethesda MD 20814
U. S. HUD Washington DC 20410

EPA-747-K-12-001
January 2020

IMPORTANT!

Lead From Paint, Dust, and Soil in and Around Your Home Can Be Dangerous if Not Managed Properly

- Children under 6 years old are most at risk for lead poisoning in your home.
- Lead exposure can harm young children and babies even before they are born.
- Homes, schools, and child care facilities built before 1978 are likely to contain lead-based paint.
- Even children who seem healthy may have dangerous levels of lead in their bodies.
- Disturbing surfaces with lead-based paint or removing lead-based paint improperly can increase the danger to your family.
- People can get lead into their bodies by breathing or swallowing lead dust, or by eating soil or paint chips containing lead.
- People have many options for reducing lead hazards. Generally, lead-based paint that is in good condition is not a hazard (see page 10).

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Protect_Your_Family_From_Lead_in_Your_Home.pdf

X *Fabian Curry*

Lessee

IP Address: 104.28.85.127
03/21/2024 11:33am PDT

X *Kristal Robinson*

Lessee

IP Address: 68.8.90.217
03/23/2024 12:14pm PDT

RANCHO SAN DIEGO ASSOCIATION

RULES AND REGULATIONS AND

ARCHITECTURAL GUIDELINES

MAY 2004

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RANCHO SAN DIEGO ASSOCIATION RULES AND REGULATIONS AND ARCHITECTURAL GUIDELINES

These Rules and Regulations have been developed by your Rules Committee and adopted by your Board of Directors on April 1, 2004. The purpose for these rules is to provide a pleasant, high quality community that all residents can enjoy and where property values will continue to appreciate. All residents (owners and tenants) shall comply with the terms, spirit and intent of these regulatory provisions. This synopsis is not intended to be all-inclusive. It is merely a brief overview. When interpreting the Articles of Incorporation, Bylaws, and Declaration of the Covenants, Conditions and Restrictions ("CC&Rs"), common sense and neighborly consideration shall prevail. The Bylaws and CC&Rs provide the Board of Directors of Rancho San Diego Association ("RSDA") with the powers to promulgate and enforce these rules and these rules have the same force and effect as the governing documents.

DESTRUCTION OF PROPERTY

Unnecessary RSDA expenses occur when property is abused. To minimize damage (and homeowner costs for repair or replacement) to RSDA property, the following rules are established:

- Surfaces of walks, fencing, buildings, courts, streets, utility boxes, or equipment are not to be scratched, broken, marred, defaced or decorated in any manner.
- Balls may not be bounced off common area fences, equipment, buildings, or walls.
- Bicycle riding or any motorized vehicles or scooters are prohibited on the common area green belts.
- Bicycle and skateboard riding is allowed on private streets, sidewalks and driveways. Bicycles and skateboards must remain off painted areas including red curbs and are prohibited from the lawn areas. Skateboard ramps are not allowed on private streets or common areas.
- Motorcycle and moped riding is restricted to streets only.
- Irrigation heads, pipes, lines, wiring, clocks, meter pedestals and equipment are not to be broken or tampered with.
- Slopes and slope banks are not to be used as pathways, bikeways, slides, walkways, playgrounds, or athletic fields.

- Trees, shrubs and groundcover are not to be cut, broken, pulled out, walked on or walked through.
- Debris, trash or litter is not to be discarded on the ground, in the street, or on the common area. Toys, bicycles, tricycles, etc., are not to be left on common area. Such articles must be stored in an enclosed area when not in use.
- Climbing on or kicking RSDA walls, fencing, buildings, roofs or equipment is not permitted.
- Lights, light standards/poles or lighting equipment are not to be broken, climbed on, kicked, marred, scratched, decorated or defaced.
- All common area is for the use of residents only, as provided in Article 5, Section 2 of the CC&R's.
- Lawn areas and RSDA owned streets may be used for reasonable non-destructive activity. Sports commonly referred to as football, baseball, softball, basketball, street hockey, kickball, soccer, rugby, La Crosse, lawn hockey, stickball, horse shoes, volleyball, badminton and games or events such as batting practice or any other activity that uses a hard bat, racquet or stick and/or solid core balls are specifically excluded. (Revised 7/20/93)
- Portable basketball hoops must be removed from the street and stored on your private property when not in use. All playing must cease as of 9:00 p.m.
- Christmas lights and decorations must be removed by February 15th.

Individuals responsible for any damage to any RSDA property will be expected to fully reimburse RSDA for all expenses incurred for restoration or replacement. Owners are fully responsible for the actions of their tenants, family members, tenants' family members, guests, invitees, tenants' invitees (including salespersons, contractors, etc.), pets, and tenants' pets.

EXTERIOR CHANGES, ALTERATIONS OR ADDITIONS

RSDA is a private, residential development built under San Diego County's PUD Ordinance, Special Use Permit #70-299. Therefore, all changes to the exterior design of the buildings or grounds MUST BE APPROVED IN WRITING by the Architectural Committee prior to construction. In addition, you must have approval from the County of San Diego Building and Planning Department if required and the San Diego County Lands Use and Environmental Regulation Department prior to construction. Unauthorized additions are subject to removal at the owners expense by the Association, the County of San Diego Building and Planning Department, or all three.

No structure (as "structure" is defined in the CC&R's), device or planting shall be placed in, on, upon, over or under a common area except by RSDA. Any structure, thing, device or planting put in, on, upon, over or under common area will be removed at the owner's expense.

All arrangements for the installation and maintenance of authorized exterior changes, alterations or additions must be accomplished by the individual owner, the owner's contractor/subcontractor, or both. Work is to be completed within a reasonable time after the commencement of work. A reasonable time is herein defined as 60 days or any other time as approved by the Architectural Committee.

If you are unable to complete your work within 60 days, you must apply for a 30-day extension. After two approved extensions, if your work has not been completed, it will be considered void and you will be required to resubmit a new request before the work is completed.

Each written request for approval of a planned exterior change, alteration, or addition must be submitted and must contain at least the following minimum information:

- A brief general description (including the color and type of materials to be used) of the change, alteration or addition to the property.
- A sketch of the site plan showing all dimensions of the change, alteration or addition and the dimensions of the change, alteration or addition in relation to the dwelling home and property lines.
- A side elevation sketch, photograph or sales brochure illustration of the proposed change, alteration or addition should be included.
- The name of the individual(s) or company that will accomplish the work and its contractor license information and a copy of its insurance certificate.
- The plans for obtaining the necessary permits from the San Diego County Lands Use and Environmental Regulations Department.
- Signatures of neighbors acknowledging the change/modification.

A standardized form is available from the RSDA office. This form can be used in requesting exterior changes, alterations, or additions.

RECREATIONAL FACILITIES

Owners who choose to rent or lease their home must inform their tenants of clubhouse, pool and recreational rules and forfeit their own privileges for that home during the term of the lease or rental period. Owners or their legal representative must register tenants with the RSDA office. Owners are responsible for providing their tenants with a copy of the Rules and Regulations. Failure to do so could result in a \$100 fine against the owner of the home.

SWIMMING POOL RULES

Please show your resident's ID when you enter the pool area. Homeowners shall review pool rules with tenants and guests. Remember to sign in by the front gate as you enter the pool area. You are allowed to bring 5 guests per household when you use the pool.

An adult resident must supervise children under the age of 14 at all times. The pool attendant maintains the pool and monitors the pool for enforcement of pool rules.

Children 14-17 years old may swim without an adult as long as they have a valid ID card, which has been obtained from the office prior to entering the pool area. To obtain an ID card for a 14-17 year old, a waiver form must be filled out and signed by a parent. Proof of age and a current picture must be brought into the office along with the waiver form. Once the card is obtained, those 14-17 year olds may swim and they will be allowed to bring one guest who must be 14 years or older. Pool attendant or children under the age of 18 are not allowed to baby-sit younger children or siblings. Those 14-17 year olds will not be permitted in the pool area without their ID card if they are unaccompanied by an adult.

The following actions or items are NOT ALLOWED in the pool or pool area:

- NO DIVING AT ANY TIME.
- No roughhousing, sitting on the shoulders of another person, tossing or pushing people into the pool, tossing or throwing people while in the water.
- Alcohol consumption is not recommended in the pool area. Alcohol may not be consumed by anyone under the age of 21.
- No hard balls in the pool (tennis balls, kick balls, soccer balls, water polo balls, basketballs, footballs, golf balls etc.).
- No rafts, inner tubes or boogie boards AT ANY TIME. Small beach balls are at the discretion of the pool attendant; if the pool is not crowded and does not interfere with anyone else's use of the pool.
- No hanging, sitting or standing on the lap lane lines or safety lines.
- No glass bottles or containers in the pool or on the pool deck.

- No pets, bicycles, skateboards, skates, mopeds, motorcycles in the pool areas.
- No running or wrestling in the pool area (roughhousing, pushing, etc.).
- No hanging or swinging on the pool handrails. These are used for entering and exiting the pool only.
- No spitting in the pool or on the pool deck area.
- No eating, drinking or smoking in the pool or at the edge of the pool.
- No street clothes may be worn in the pool, only appropriate swimwear. T-shirts are allowed only for protection from the sun.
- An adult must be in the pool at all times with a child that cannot swim regardless if they have on a flotation device or not.
- No disposable diapers allowed in the pool, only cloth diapers with rubber pants or swim diapers.
- General rules for courtesy are to be observed (e.g., stay clear of those swimming in the lap lanes, no loud boisterous activity that would disturb others, return chairs to the storage closet).
- No thong swimsuits will be allowed.
- An adult must accompany all children using the wading pool AT ALL TIMES.
- Failure to abide by these rules could result in a loss of pool privileges.

Pool use hours are published in the newsletter. As a general rule, the pool at Hansen Park will be open mid-June through mid-September.

PARK AND COURT RULES

- An adult resident must accompany all guests. A maximum of five (5) guests per household is allowed unless prior permission is given for more.
- The facilities are not to be used prior to sunrise or after sunset except for functions approved by or sponsored by the Board of Directors. Basketball courts and tennis courts are open until 10 p.m.
- Tennis courts are to be used by tennis players only.
- Court use is on a first-come first-served basis. When others are waiting, there is a time limit on court use in accordance with posted regulations.
- No glass bottles or any other glass items are permitted on the courts or playgrounds at any time.
- Courts shall be used only for their designated functions.

- Persons or groups using the courts or playgrounds are to clean up after use and ensure that there is no refuse, debris or litter left from their own use.
- Persons or groups using the barbecue grills and/or the picnic tables are to clean the grill and remove all ashes, coal, wood, trash, litter and debris from the grill after use.
- Hot coals, wood or ashes from the grills are to be soaked in water prior to disposal to prevent fire hazards.
- Courts and playground areas are not to be monopolized by groups unless specifically authorized in writing by the Board of Directors.

CLUBHOUSE RULES

- No persons are allowed in the clubhouse recreation areas wearing swimsuits that are wet.
- Use of kitchen facilities is restricted to adult residents. The resident concerned will be fully responsible for clean up after each use, as well as, any and all damage. A charge will be levied to cover the full costs incurred by RSDA for any clean up and/or repair.
- The Board of Directors may suspend the privilege for use of the clubhouse facilities by any individual resident(s) at any time. Rules infractions or violations of the CC&R's are cause for such action. Fines may be levied as deemed appropriate by the Board of Directors.
- An adult resident must accompany all guests. A maximum of five (5) guests per household is allowed unless the clubhouse is rented or approval from the RSDA office has been obtained prior to arrival.
- General rules for courtesy are to be observed (refrain from boisterous conduct; do not play radios loudly, empty and return ashtrays, do not jump on furniture or throw cushions, clean up spilled drinks, do not allow litter to be strewn about, return items used, promptly report any breakage to the attendant on duty, etc.)
- Wood, paper, litter, trash, refuse and debris are not to be burned in the gas log fireplace.
- Fireplaces are not to be used for emptying ashtrays or trash disposal.

GROUP USE OF THE FACILITIES

The recreational facilities must be kept available as much as possible for all residents and cannot be reserved exclusively for organized group activities during the normal daily hours of operation. The Board of Directors, however, may authorize individuals or groups to utilize or rent the facilities at either park on an exclusive basis in accordance with the following provisions:

- Neither clubhouse nor park area may be used for the purpose of vending goods or services by or for any individual or organization unless the goods or services are part of an event sanctioned by the Board of Directors and the goods or services are resident solicited and a user fee (to cover the additional utility cost and attendant time) is paid to RSDA if such a fee is applicable.
- Teams may not use clubhouse or park area unless the team has the approval of the Board of Directors and team membership is open to all residents in good standing. A user fee (to cover the additional utility cost and attendant time) may be required by RSDA. As part of its approval, RSDA shall be released from all liability for death, dismemberment, blindness or other injury by the participant or the parent or legal guardian of each minor team member or prospective team member.
- Organized groups may not use clubhouse or park area unless the organized group has the approval of the Board of Directors and a user fee (to cover the additional utility cost and attendant time) is paid to RSDA if such a fee is applicable. Groups must provide additional insurance listing RSDA on the policy.
- Individuals, teams, groups or organized groups that are granted permission to utilize either clubhouse or park area on an exclusive basis must assume full responsibility for any and all cleanup, damage, preparation, trash removal, furniture movement, meal serving equipment and any/all other requirements necessary for their function, as well as the costs involved for any clean up, repair, replacement or trash removal that results from their function.
- Residents may reserve the clubhouse only with written permission of the owner(s).
- The clubhouse and swimming pool areas will be available for rental use by individual residents on an exclusive basis in accordance with the following provisions:
 - a. The facility must be reserved by signing the Facility Use Agreement and paying the rental fee at the RSDA office, Monday-Friday, 8 a.m. - 4 p.m. The reservation will be confirmed upon receipt of the rental fee.

- b. A \$300 security deposit will be required when picking up the keys with each request for use of the facility. Only cash, a money order or cashier check will be accepted for the deposit fee.
- c. Only adult residents in good standing may reserve the facility. Tenants must have the written permission of the owner of their home. The person making the reservation and signing the reservation form must remain in attendance during the entire period of use and is responsible for supervision of the event, clean up and restoration following the event and will be held responsible for any fees due as a result of the event.

PETS

Residents must have pets leashed and in control at all times when outside individual enclosures or living homes. The owner of the offending animal must promptly remove animal litter deposited on streets, sidewalks, lawns, or common areas. Owners that do not promptly remove the litter deposited by their animals will be reported to the San Diego County Health Department and a fine will be levied against the owner of the animal for each occurrence.

In order to prevent attacks and/or prevent damage, animals are not permitted to run loose or to be maintained in unfenced areas (common and private areas) unattended. Pets may not be tethered to trees, shrubs or other property in common areas or parks. Animals maintained in such a manner are considered constituting a safety hazard and/or nuisance and a fine of \$100 may be levied against the owner of the animal. If the owner of the animal is a tenant, the owner of the residence must assume the ultimate responsibility.

Individual residents may, and are encouraged, to report leash law violations to the San Diego County Animal Shelter at (619) 263-7741 and animal waste litter violations to the San Diego Health Department at (619) 515-6555.

SIGNS

Signs may not be attached to or placed on Association common areas. "For Sale" or "For Rent" signs, and other signs allowed by law, may be attached to private gates, private garages, or windows in individual homes or on the privately owned portion of lots. Signs, which are in violation of these provisions, will be removed and disposed of by RDSA personnel without notice.

HOME BUSINESS OR INDUSTRY

Each and every lot except those lots specifically designated as common area are to be used as a site for a dwelling home or a portion thereof, and each and every dwelling home is to be used for the purpose of a single family residence.

No business, professional activity or industry of any type shall be conducted in RSDA without the specific written approval of the Board of Directors acting on the recommendation of the Rules Committee and/or the Architectural Committee. A fine of \$100 could be levied for each violation of this rule. Each day a business is conducted in violation of this rule may be considered a separate violation.

Any home occupations approved by the Board shall be subject to the following:

- There shall be no exterior evidence of the conduct of a home occupation.
- A home occupation shall be conducted entirely within a home or an attached garage.
- Electrical or mechanical equipment which creates visible or audible interference in radio or television receivers or causes fluctuations in line voltage outside the home shall be prohibited.
- The residents of the home, and no more than one non-resident employee, may be engaged in the home occupation.
- Limited indoor storage of goods or supplies (125 cubic feet maximum) may take place within no more than one room of the dwelling and/or in the attached garage (provided required parking on-site is maintained and properly located).
- There shall be no on-premise sale of goods. Occasional transport of goods from the premises for off-site sale may occur.
- The establishment and conduct of a home occupation shall not change the principal character or use of the home involved.
- There shall be no signs identifying or advertising the home occupation other than those permitted by section 6252(d) of the County Home Occupation ordinance.
- The required residential off-street parking shall be maintained.
- A home occupation shall not create vehicular or pedestrian traffic in excess of that which is normal for the zone in which it is located.

TRASH

No lumber, metals, bulk materials, refuse or trash shall be kept stored or allowed to accumulate on any lot except for building materials during the course of construction of any approved structure.

Trash, garbage and other refuse are picked up weekly.

CONTAINERS: The use of disposable plastic bags is encouraged or place refuse in watertight containers that do not exceed 40 gallon capacity, but not less than 20 gallons. Containers may not weigh more than 25 lbs.

CAUTION: Some types of plastic and rubber containers split and/or break from exposure to the weather, replace your trash cans if this occurs. Trash cans full of water due to rain will not be picked up. Empty cardboard boxes should be broken down and tied along with newspapers.

MATERIALS NOT PICKED UP: Dirt, sod, water heaters, large appliances, furniture (including mattresses w/springs), plaster/concrete, rock or building material from construction, demolition or remodeling will not be picked up with the regular collection. Separate arrangements may be made between the disposal company and the resident for hauling of these materials.

TIME: Refuse containers are not to be placed outside at the pick-up point prior to 5 p.m. on the evening preceding the pick-up. However, containers should be at the curbside pick-up point not later than 6 a.m. on the day of collection. Containers must be removed no later than 8 p.m. on the day of pick-up. Covers must be kept in place and bags must be securely tied (County ordinance). When not set out for collection, containers must be stored out of sight. Containers in violation will be removed and disposed of without notice.

HOLIDAYS: Refuse will not be collected on national holidays. The collection will be one day later for the entire week following these holidays: New Years Day, Memorial Day, Independence Day, Labor Day, Thanksgiving Day, and Christmas.

Due to the possibilities of injury, the collectors are not allowed to insert their hands into any of the containers. Any material jammed into containers that will not empty when the container is turned upside down will be left in the container.

PARKING AND VEHICLE REPAIR

Off-street parking spaces for a minimum of two cars are provided for each home in carports, driveways and garages. Off-street parking for resident vehicles (including mopeds and bicycles) is permitted only in designated spaces. Conversion or use of the

garage or carport into a room or storage area by the present or previous resident does not relieve the present resident from the responsibility of keeping their vehicles off the private streets.

No vehicle of any type shall be parked on the sidewalk or planted areas. Parking is not allowed on the private streets. Guests must park in guest parking spaces where available.

PARKING

- Residents must park in "Association Permit Parking" designated areas only.
- Vehicles that are too large to be parked in a garage, driveway or carport (construction trucks, lumber trucks, etc.) will be in violation of the parking rules. If an oversize vehicle is parked on the street or in guest parking areas, the owner/operator of said vehicle may be subject to a \$100 fine for each violation in addition to any towing or related charges and any other action deemed necessary by the Board of Directors.
- No vehicle overhaul, major maintenance work, installation work, repair work, oil changes, tune-ups or major component replacement shall be accomplished within parking spaces, on streets, in driveways, in carports or in other areas of RSDA except in an enclosed private area. A fine of \$100 may be levied for each violation.
- Any inoperable vehicle that is parked for longer than 72 hours on any lot in view of any surrounding property is in violation of the CC&R's. An inoperable vehicle shall mean:
 - Having flat tires
 - Inoperable due to body damage
 - Inoperable due to motor or drive train
 - Expired license plates
- Boats, campers (both on and off vehicles), unmounted camper shells, motor homes, recreational vehicles or trailers shall not be parked or stored on public or private streets or anywhere else other than in enclosed garages or within structures approved by the Architectural Committee except for the purpose of loading or unloading which shall not exceed 48 hours, thereafter, they must be removed.
- Residents utilizing Association Permit Parking areas must apply for an RSDA parking permit. A parking permit will be provided upon completion of a parking permit request form and by meeting the requirements for your area. Forms and permits are available at the office.

- The RSDA office must be contacted for guests utilizing parking spaces exceeding a 24-hour period.
- These provisions apply for all private streets and areas within RSDA. A fine of \$100 and/or tow could be imposed for each violation of this provision.
- Parking is not permitted on the private streets, except in designated areas.
- Private streets having designated parking spaces will be marked "Guest Parking," "Resident Parking," "Resident Permit Parking," or "Resident Permit/Guest Parking." Residents with an RSDA vehicle identification sticker (permit) are to share "Resident Permit/Guest Parking" with guests.
- Residents may park only in the "Resident Parking" spaces.
- Guests may park only in the "Guest Parking" spaces.
- RSDA resident vehicles with an RSDA vehicle identification sticker (permit) are permitted to park in "Resident Permit Parking" or "Resident Permit/Guest Parking" areas.
- All RSDA resident vehicles requesting an RSDA vehicle identification sticker (permit) must be registered at the RSDA office.
- Only one (1) RSDA vehicle identification sticker (permit) per household will be issued following the registration of vehicles at the RSDA office in areas where designated spaces are available.
- Inoperable vehicles and stored vehicles may not be parked in designated guest or resident parking spaces. A stored vehicle is one which has not been moved for 72 hours. A stored vehicle will be ticketed and then towed without further warning after three (3) tickets.
- Areas which have assigned parking will not lose their space, but the vehicle parked in the assigned space must be registered at the RSDA office and have an RSDA vehicle identification sticker (permit).
- In areas not having assigned parking but having designated spaces, the "Resident Permit Parking" or "Resident Permit/Guest Parking" will be on a first-come, first-served basis.
- Any vehicle parked on a private street in a "Resident Parking" space without an RSDA vehicle identification sticker (permit) will be ticketed and towed after three (3) tickets.

- Any vehicle parked on a private street not in a designated area will be ticketed and towed after three (3) tickets.
- Any RSDA resident vehicle parked on a private street in a “Guest Parking” space will be ticketed.
- RSDA vehicle identification stickers (permits) will be issued to residents with physical disabilities or mitigating medical circumstances. A request form is available at the RSDA office and must be filled out by a physician before a RSDA vehicle sticker (permit) will be issued.
- “Red Zone” parking is prohibited. Parking in a “Red Zone” will result in an immediate tow.
- The registered owner of a vehicle which is towed will be responsible for all towing charges.
- Anyone receiving three (3) parking tickets within a 12 month period will be subject to a fine and/or towing. The three (3) tickets do not have to be consecutive. This is relative to any parking on lawns/grass areas or any other place that is not allowed in RSDA.
- Parking a camper, motorhome, trailer, boat, etc. in a fire lane is not allowed at any time. This will result in an immediate tow and/or fine.
- Accompanying Notes to Private Street Parking Policy:
- A RSDA vehicle identification sticker (permit) for RSDA residents may not be placed on RVs, semis, or boats. The RSDA vehicle identification stickers (permits) are numbered and are transferable. It should be displayed at all times on the rear view mirror or front windshield of the vehicle.
- A RSDA vehicle identification sticker (permit) will be issued only upon meeting the requirements for application.
- Requirements for application of all areas except Seville I and II:
- Residents of RSDA must register vehicles at the RSDA office. Designated parking spaces must be located within that residential area.

GENERAL NUISANCE AND NOISE

No obnoxious or offensive activity shall be conducted upon any lot or part of the properties, nor shall anything be done thereon which may be, or may become an annoyance or nuisance to the neighborhood or which shall in any way interfere with the quiet enjoyment of each owner of their respective dwelling or which shall in any way increase the insurance rate of RSDA. No excessive and continuing noise, such as barking dogs, loud engines, sound amplification equipment, etc., is permitted. All residents must comply with the San Diego County Noise Abatement and Control Ordinance Section 36.414.

FINES

A failure or refusal to pay the fines levied for a violation of any of the foregoing provisions may result in a lien placed against the home for all unpaid amounts, costs of collection, attorney fees, notary fees, administrative costs, and filing fees. Any such lien may be collectible through judicial foreclosure.

All residents against whom a fine may be levied for violation of any of the foregoing provisions will have the opportunity for a hearing before the Board of Directors during the executive session of the monthly Board meeting. Any hearing must be scheduled in advance with the RSDA office.

FINE SCHEDULE

Fines for first time violations may be levied in accordance with the following schedule:

Hazardous Activities	up to \$300.00
Use Restrictions	up to \$200.00
Vehicle and Parking Restrictions	up to \$200.00
Any violation of the Bylaws, CC&Rs, or Rules and Regulations not specifically mentioned	up to \$200.00
Unauthorized improvements to property per discretion of Board \$25 minimum	up to \$200.00

Fines shall be in addition to an assessment equal to any applicable cost of repair. Fines for continuing or repeated violations may be increased in \$100.00 increments at the

discretion of the Board. In the discretion of the Board, fines for continuing violations may be imposed on a daily basis until the violation is corrected. For the purposes of this Fine Schedule, a "continuing or repeated violation" shall be one which is assessed to a single lot within a twelve-month period. However, should a twelve month period pass without any violations, a first notice to correct the violation must be sent by RSDA prior to imposing any fines.

Four or more violations assessed to a single lot in any six month period may result in an additional fine of up to \$500.00, at the discretion of the Board.

ARCHITECTURAL COMMITTEE DESIGN GUIDELINES

OBJECTIVES

This document is a guide for both the Architectural Committee, Board and the Owners of RSDA. It is hoped that this booklet will increase the homeowner's awareness of the ways that the integrity of our community can be preserved and the responsibilities they must assume in this process. These guidelines are broad based and address the main exterior improvements for which homeowners normally make applications.

The objectives of these guidelines are:

To provide uniform guidelines to be used by the Architectural Committee and Board in reviewing applications so as to achieve the objectives described in the CC&Rs.

To assist owners in preparing applications and to offer basic design principles that will obtain exterior improvements that will be in harmony with and are compatible with the general overall appearance of RSDA.

These guidelines are directed only to alterations of the exterior of homeowners properties and to any change that has a visual impact on our neighbors. The imposition of these controls assure owners that the standards of good design will maintain their property values and enhance the environment.

ASSOCIATION APPROVAL

Article 8, Section 8.2 of the CC&R's specifically state that all exterior alterations require the approval of the Architectural Committee with a final determination by the Board. Further, once a plan is approved, it must be abided by or the committee and Board must approve any change.

It is important to understand that this approval is not limited to major alterations such as adding a room or deck to a house but includes such items as changes in color and materials, etc. Approval is also required when an existing item is to be removed.

Each application is reviewed on an individual basis. There are no "automatic approvals". A homeowner who wishes to construct a deck, for example, identical to one already approved by the Association is still required to submit an application.

In every case, an application must be submitted and reviewed in order to consider specific implications of location and the impact on surroundings.

COMMUNITY COMMON AREAS

Common areas, which have been damaged or disrupted due to the installation or construction of an individual owner's improvement is to be restored to its original state at the owner's expense. Any improvement plan requiring placement of electrical lines, sewer lines or gas lines over or under common areas is to fully detail the exact location of such lines in relation to the owner's lot or home.

COUNTY PERMITS

Approval by the Association for any improvement does not waive the necessity of obtaining required county permits. Obtaining county permits does not, however, waive the need for Association approval prior to construction.

REVIEW CRITERIA

The Architectural Committee and Board evaluates all submissions on the individual merits of the application. Beside evaluation of the particular design proposal, consideration is given to the characteristics of the housing type and the individual site, since what may be an acceptable exterior design in one instance may not be for another.

Judgments of acceptable design are based on the following criteria, which represents in more specific terms the general standards of the CC&Rs.

Applications are reviewed to assure that the proposal is in conformance with Article 8 of the CC&Rs.

The proposed improvements must be compatible with the architectural characteristics of the applicant's house, adjoining houses, and the neighborhood setting. Compatibility is defined as similarity in architectural style, quality of workmanship, similar use of materials, color and construction details.

Each neighborhood has individual characteristics and the proposed alteration should be a compliment to it.

VARIANCES

The architectural guidelines are designed to preserve the property values and create aesthetic harmony throughout RSDA. As each lot and home is unique, certain improvements may be desired by a homeowner but may be in conflict with these guidelines. A variance may be requested when an owner wishes to make an improvement, which is prohibited in these guidelines.

In addition to providing the required information for normal plan approval, the applicant should also include these:

1. A detailed diagram of the improvement in relation to the plot plan. Also a clear explanation of where the improvement does not comply with the RSDA Architectural Guidelines.
2. Illustrate how the improvement will be harmonious with the existing structures in the neighborhood.
3. On any variance request, the Architectural Committee will require the signature of all owners who will be affected by the change. This includes neighbors on either side, across the street or anyone with whom this will reasonably have an impact.

ARCHITECTURAL VIOLATIONS

Article 8 also outlines the inspection and correction of work completed under the authority of an approved application. Homeowners are required to notify the Architectural Committee in writing upon completion of work. Within 30 days of notice the Committee may inspect the improvements to determine compliance with the approved plans. In the event the improvement does not comply with the approved plans, the improvement will be deemed a violation.

GUIDELINES

The following listing of specific improvements will be used by the Architectural Committee and Board to review applications by owners of RSDA for approval of proposed alterations:

AIR CONDITIONERS

Air conditioners visibly extending from windows are generally not allowed, but may be approved if properly shielded. The application for window installation must include information regarding the type of shielding proposed.

ANTENNAS

1. All outside radio antennas and television transmission facilities are prohibited.
2. Satellite dish antennas no larger than 36" in diameter are allowed with architectural approval.

ATTIC VENTILATION

1. Ventilators or other mechanical apparatus' requiring roof installation are to be as small as possible and painted to match roof color.
2. Ventilators should be located on the least visible side of the roof and may not extend above the ridgeline.

BARBEQUES - PERMANENT

1. Permanent barbeques are to be located in rear or side yards only whichever is least visible, and located so as to minimize smoke to neighbors.
2. Application must provide the following items:
 - a. Dimensions
 - b. Material and color
 - c. Elevation
 - d. Location of barbeque in relation to neighbors

CLOTHESLINES

Visible outdoor clotheslines are not allowed.

DOG HOUSES AND DOG RUNS

Dog houses:

1. Permanent dog houses are to be compatible with applicant's house in style and color.

2. Dog houses are to be located in rear or side yards only in an area that is visually obstructed.

Dog Runs:

1. Dog runs are permissible only in detached homes.
2. Chain link fencing may be used for a dog run only together with a solid privacy fence. Chain link fencing is to be softened by landscaping.
3. Dog runs must be cleaned regularly to prevent odors that may offend neighbors.

ENTRANCE GATES

The Architectural Committee and Board will judge these gates on an individual basis.

FENCES

1. Rear yard fencing may be added, but must match the existing fence unless another fencing material is approved by the Architectural Committee and Board. Fence style, materials and finished color are to be compatible with applicant's house. Chain link is not permissible as fence material except as specified in Dog Runs. Barbed wire is not permissible as fence material.
2. Fencing in front yard is discouraged. Any desired screening of the front yard should be accomplished through landscaping. Hedges used in this manner are not to exceed 36 inches in height unless the Architectural Committee and Board grant a variance.
3. Placement of the fence and support structures may not interfere with adjacent RSDA sprinkler systems, nor be constructed over irrigation lines.
4. Materials for side yard fencing will be given special consideration depending on its exposure to the neighborhood.
5. All supportive posts are to be set in concrete.
6. The tops of all fencing are to be horizontal with vertical members remaining plumb.
7. Stepped fencing is permissible where the grade slopes.

8. Fencing which is finished on one side must have the finished side facing away from applicant's house.
9. In the selection of a fence style, the degree of "openness" depends on its use.
10. Fences are required to surround all spas or hot tubs. Refer to County Regulations.
11. Fence style requirements:
 - a. Wrought Iron
 - Must have painted finish.
 - b. Solid Wood - Privacy fence
 - Maximum height 6 feet.
 - Must be stained or painted to harmonize with the house color.
 - Consideration should be given to shadowing or view obstruction of adjacent property when utilizing a solid fence.
 - c. Masonry Walls: cinder block, brick or adobe.
 - Cinder block walls must be stuccoed.
 - Solid block walls not to exceed 6 feet.
 - Color must match existing structure.

GARAGE DOORS

1. Original garage doors may be replaced with comparable wood constructed doors, painted to match the original or compatible color.
2. Metal, sectional doors may also be used as replacements as long as the color is compatible with the house.

FIREPLACES, CHIMNEYS, FLUES

1. The exterior appearance of a fireplace must match the existing or new structure.

2. Where metal flues are used for pre-fabricated fireplaces, the roof vent must conform to standards listed under the section on Attic Ventilators.

GUTTERS AND DOWNSPOUTS

1. Must be painted to match the existing trim.
2. Run-off from gutters must not affect adjacent property and should be directed towards the street.

LANDSCAPING AND IRRIGATION

1. Trees and shrubs should be selected and placed in a manner, which does not obstruct adjacent homeowner's views.
2. Mature size of plant should be carefully considered.
3. Plants are not to encroach on walkways or block walkway lighting.
4. Irrigation lines are to be subterranean.
5. Appropriate drainage is to be supplied and directed to the street to prevent run-off onto adjacent or common area properties.
6. Sprinklers should be adjusted so as not to spray adjacent properties or public sidewalks.
7. Applications must provide the following items:
 - a. Listing of plant materials
 - b. Location of plants on overall site plan showing house
 - c. Planters and retaining walls - dimensions, materials, color/finish
 - d. Details on irrigation lines and drainage

LIGHTING/EXTERIOR WALKWAY AND SECURITY LIGHTING

1. Lights are not to be directed outside applicant's property.
2. Proposed fixtures are to be compatible with applicant's house in style and scale. Include a sketch or picture of fixture.
3. Indicate wattage of lamps.
4. Indicate location and area they will illuminate.

PAINING EXTERIOR

1. Any change of exterior color requires approval.
2. Colors selected must be in harmony with the other homes in the neighborhood.
3. Re-painting of exterior requires approval only if the color is to be changed.

PATIO AND GROUND DECKS

1. Materials and final color are to be harmonious with applicant's house.
2. Adequate drainage is to be installed to prevent standing water and run-off onto adjacent properties.
3. Application must provide the following items:
 - a. Site plan indicating location of patio or deck in relation to existing house.
 - b. Listing of materials, colors and finishes.
 - c. Drainage provisions and flow or run-off.
 - d. Dimensions.
 - e. Elevation drawings.
 - f. Construction data.

PATIO COVERS

1. Patios with covered areas may not be screened.
2. The style and material of roll-up shades on patio covers must be approved.
3. Metal patio covers simulating a wood finish will be considered.
4. Patio covers may be free standing or attached to existing structure. See Architectural Committee guidelines for details.

5. Obstruction of view from adjacent properties is to be considered when constructing a patio cover.
6. Solid patio covers:
 - a. Solid covers should be reasonable in area.
 - b. Provisions for drainage must be made. Run-off is not to affect adjacent properties.
7. Application must provide the following items:
 - a. Location of cover in relation to house.
 - b. Materials and color of stain.
 - c. Dimensions.
 - d. Elevation drawings.

CARPORT BEAMS/FRAMING

The Board of Directors and the Architectural Committee recognize, due to the age of the project and in some cases, homeowner neglect, that occasions occur when wood components on the exterior of your homes, including wood beams and framing become infested with termites and/or dry rot. Removal, alteration or the change of character in any of the wood components requires the approval of the Board of Directors and the Architectural Committee. Notwithstanding the foregoing, wood beams on "Patio" homes must be replaced as they were prior to the removal. (revised 3/21/00)

ROOFING

1. There are several roofing products that conform to the RSDA Architectural Guidelines. However, the main thrust of these guidelines is to preserve the appearance of our RSDA community.
2. Wood shakes are prohibited in this area by the Fire Marshal. In light of this, substitute products have become the norm in RSDA, such as asphalt, tile or metal shingles. Examples are Elk Prestique Plus, Cal-Shake, Maxi-Tile, Eaglelite, Celotex Presidential or Dimensional. These manufacturers and products are representative of the high definition style of roofing which RSDA wishes to maintain. To obtain this high definition

look and to ensure sufficient durability, roofing material must be rated at a minimum of 25 years and have an "A" rating. Most of the above-recommended products are 30 to 40 year materials.

3. Although there are a wide variety of roofing colors available, many shades are not appropriate for individual homes or sections of our community. As a general rule, colors must be compatible with the home, surrounding homes and the neighborhood. Most manufacturers make a color, which closely resembles the natural look of wood shakes. This is of primary consideration when choosing a color for a new roof.
4. Choose your contractor carefully. There have been some instances of contractors substituting a lesser quality roofing material than what is specified in the contract. A copy of your roofing contract must accompany your Architectural request form.

ROOM ADDITIONS

County law generally does not allow room additions. Before signing agreements with builders or submitting an application, check with the Planning and Use Commission to see if you are permitted to build. If you are within these guidelines, the Architectural Committee and Board may then conditionally approve the architectural change contingent upon the Homeowner obtaining county permits.

SCREEN DOORS

Acceptable, if compatible with overall appearance.

SHADES AND AWNINGS

Canvas and metal awnings over windows are prohibited.

SKYLIGHTS

1. Skylights with unfinished metal curbs are prohibited.
2. Solar tubes are acceptable.
3. Application must provide the following items:
 - a. Indicate type and color of skylight and glazing.
 - b. Indicate if skylight is permanently sealed or can be opened.

- c. Provide elevation drawing showing skylight.

SOLAR PANELS

These should be as unobtrusive as possible and in harmony with the house in design and color.

STORAGE SHEDS AND GREENHOUSES

1. All storage sheds and greenhouses are to be located in rear or side yards only.
2. Materials, color and style of sheds are to match existing structure.
3. Pre-fabricated metal sheds will be considered on an individual basis.
4. All sheds are to have roofs.
5. Application must provide the following items:
 - a. Location of shed/greenhouse in relation to applicant's house.
 - b. Dimensions.
 - c. Materials to be used.
 - d. Color and Finish.

SWIMMING POOLS AND SPAS

1. Permanent above ground pools are prohibited.
2. Portable or above ground spas are permissible.
3. Pool or spa equipment is to be placed so as not to disturb adjacent properties.
4. The county requires a fence surrounding pools and spas. See County Regulations.
5. Spa or pool equipment is to be enclosed.
6. Plumbing lines to spa or pool must be concealed underground.

7. Application must provide the following items:
 - a. Location of spa or pool to existing structure and property lines.
 - b. Dimensions of spa or pool.
 - c. Drainage details.
 - d. Materials for any decking.
 - e. Location of equipment and shed detail.
 - f. Detail on fencing to surround pool or spa.

WINDOWS AND WINDOW TREATMENT

Iron grillwork may be a hazard in the event of a fire, but applications will be considered on an individual basis.

FINAL COMMENT

It should be noted that even where the above listed guidelines indicate permissibility for a desired alteration, it is still mandatory for homeowners to submit the proper application and information required by these guidelines. The Architectural Committee will be available to assist applicants in the interpretation of these guidelines.

POLICY ON GRANTING LICENSES, EASEMENTS AND SALE OF COMMON AREA

PREAMBLE

The Board of Directors caused to be recorded 2003 Amended and Restated CC&Rs. This document allows the Board of Directors to grant licenses and easements and further allows for the sale of common area via lot line adjustments (Article 2, Section 2.9). These provisions were primarily added to the CC&Rs to accommodate existing encroachments into the Association's common area. It is the Board's desire to establish a policy for the granting of licenses, easements and the sale of property in the future. The Board hereby adopts the policy as set forth below effective June 1, 2004. Nothing in this Policy is intended to modify or otherwise alter the CC&Rs or other Association Governing Documents.

POLICY

It shall be the policy of the Board of Directors to:

- (a) Generally not grant owners licenses, easements or sell common area except in extraordinary cases such as:
 - (i) to grant licenses, easements or sell property to correct pre-existing or otherwise resolve long term encroachments into the common area. Typically, these encroachments include all or a portion of fences, patios and landscaping and occasionally portions of buildings; or
 - (ii) where the owner has been continuously using the common area for at least five (5) years with RSDA's knowledge and where the location of encroachment is de minimus and unique and only affects the owner of the property and has no immediate impact on any of the owner's neighbors or RSDA as a whole; or
 - (iii) where the Board deems in its discretion a de minimus encroachment is necessary after reviewing the site, and making specific findings as to why the encroachment should be allowed. The owner shall submit a list of specific reasons why the encroachment is required. The Board will not entertain an

encroachment where the request is based upon the following reasons:

- (1) increase in property value;
 - (2) installation or use of a trash enclosure;
 - (3) installation of playground equipment;
 - (4) use as a pet run;
 - (5) storage of any kind;
 - (6) personal garden;
 - (7) spa or jacuzzi.
- (iv) ordered by a court to grant an easement.

Granting licenses, easements and selling RSDA common area shall be in the absolute discretion of the Board of Directors. No sale may be allowed, or easement or license granted, if it would unreasonably interfere with any exclusive easement or with any other owner's use, occupancy or enjoyment of his or her lot. The Board of Directors shall strive to be consistent in the granting of licenses and encroachments and the sale of property. Owners shall be responsible for all attorneys' fees and costs incurred by the Association resulting from granting an encroachment or sale of property.

The homeowner is solely responsible to see to it that any encroachment does not violate any County ordinances, including open space ordinances. As a condition of approval, homeowner and its successors agree to indemnify and hold harmless the Association, its officers, directors and employees from any and all liability arising from the granting of the encroachment.

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Rancho_San_Diego_Rules_and_Regulations_2004.pdf

X *Fabian Curry*

Lessee

IP Address: 104.28.85.127
03/21/2024 11:34am PDT

X *Kristal Robinson*

Lessee

IP Address: 68.8.90.217
03/23/2024 12:14pm PDT

16. Sign and Accept

16.1 ACCEPTANCE OF LEASE

ENTIRE AGREEMENT

Time is of the essence. This document constitutes the entire Agreement between the parties, and no promises or representations, other than those contained here and those implied by law, have been made by Landlord or Tenants. Any modifications to this Agreement must be in writing signed by Landlord and Tenants. The failure of Tenants or their guests or invitee to comply with any term of this Agreement is ground for termination of the tenancy, with appropriate notice to Tenants and procedures as required by law.

This is a legally binding document. Read it carefully before signing. By typing your name, you are consenting to use electronic means to (i) sign this contract (ii) accept lease agreement and addenda. You will receive a printed contract for your records.

If for any reason I do not comprehend this contract in its entirety, I understand I am entitled to obtain an interpreter at my own expense. By my execution of this contract I hereby attest that I understand and will abide by all terms and conditions contained herein.

THIS AGREEMENT MAY AUTOMATICALLY CONTINUE AS A MONTH-TO-MONTH TENANCY AFTER TERMINATION OF THE INITIAL TERM.

X Fabian Curry

Lessee

IP Address: 104.28.85.127
03/21/2024 11:34am PDT

X Kristal Robinson

Lessee

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Lessor

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